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COLLECTIVE BARGAINING AGREEMENT BETWEEN

**THE CITY OF DUBLIN
AND
THE FRATERNAL ORDER OF POLICE
CAPITAL CITY LODGE NO. 9**

**POLICE OFFICER AND SERGEANT &
LIEUTENANT BARGAINING UNITS**

**TERM OF AGREEMENT:
JANUARY 1, 2023 – DECEMBER 31, 2025**

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ARTICLE 1 AGREEMENT

Section 1.1 Agreement. This Agreement is made and entered into at Dublin, Ohio by and between the City of Dublin, as Employer, hereinafter referred to as "Employer", "City", or "Department", and the Fraternal Order of Police, Capital City Lodge No. 9, hereinafter referred to as the "Lodge".

Section 1.2 Purpose. This Agreement is made for the purpose of setting forth the understandings and agreements between the City and the Lodge governing the wages, hours, terms and conditions of employment for those employees (hereinafter referred to as "members" or "member") included in the bargaining units identified herein.

Section 1.3 References. Should any part of this Agreement be held invalid by operation of law or by final order issued by any tribunal of competent jurisdiction, or should compliance with or enforcement of any part of this Agreement be restrained by any such tribunal pending a final determination as to its validity, such invalidation or temporary restraint shall not invalidate or affect the remaining portions hereof or the application of such portions to persons or circumstances other than those to whom or to which such invalidation is applicable. Should such events take place, and upon written request by either the Employer or the Lodge to the other, the Employer and the Lodge shall meet within thirty (30) days of receipt of the written request in an attempt to modify the invalidated provisions by good faith negotiations.

No representative of the City or the Lodge shall make or ask a member to make any written or verbal agreement which would conflict with this Agreement. Nothing in this Article, however, will prevent the City from consulting with the Union concerning offering a reasonable accommodation to employees as required by law.

Unless otherwise specifically provided in this Agreement, no changes in this Agreement shall be negotiated during its duration unless there is written accord by and between the Employer and the Lodge make such change(s). To be incorporated within this Agreement, any changes must be in writing and signed by the authorized representatives of the Employer and the Lodge.

Section 1.4 Applicability. This Agreement shall be memorialized by legislation of the Dublin City Council and when memorialized shall supersede and replace all applicable state and local laws which the Agreement has authority to supersede and replace. Where this Agreement is silent, the provisions of applicable law shall prevail. Economic benefits granted to employees within the bargaining units governed by this Agreement, which are sanctioned by the Employer and which are in effect on the ratification dates of this Agreement and which are not specifically provided for or abridged by this Agreement, shall not be lessened during the term of this Agreement. The following types of Property and Casualty Insurance Policies, and any subsets thereof, maintained by the City shall not, in any way, be regarded as "economic benefits": Property, Employee Theft, Boiler & Machinery, Inland Marine, Public Officials Liability, Automobile, General Liability, Employment Practices Liability. The foregoing list is not intended to be either inclusive or exclusive of any other economic benefits herein.

ARTICLE 2 RECOGNITION

Section 2.1 Recognition. The Employer recognizes the Lodge as the sole and exclusive representative of all members in any and all matters relating to wages, hours, terms and conditions of employment, and the continuation, modification, or deletion of an existing provision of this Agreement and for the administration of this Agreement.

Section 2.2 Bargaining Units. There shall exist in the City of Dublin two (2) bargaining Units and they shall consist of:

- A. All full-time sworn police officers below the rank of Sergeant who are employed by the Employer ("Police Officer Unit").
- B. All full-time sworn police officers of the rank of Sergeant or above who are employed by the Employer, but excluding the rank of Deputy Chief and Chief ("Supervisory Unit").

References throughout this Agreement to member or members shall mean employees within both bargaining units, unless specified otherwise.

ARTICLE 3 LODGE SECURITY

Section 3.1 Dues Deduction. The Employer agrees to deduct Lodge membership dues in the amount certified by the Lodge to the Employer, the first pay period of each month from the pay of any Lodge member requesting the same in writing. The Employer also agrees to deduct Lodge Initiation fees and assessments, in the amount certified by the Lodge to the Employer, the first pay period of each month, in which such fees and assessments are due, from the pay of any appropriate Lodge member.

If a deduction is desired, the Lodge member shall sign a payroll deduction form which shall be furnished to the Financial Secretary of the Lodge. Once each calendar month, a warrant in the aggregate amount of the deductions made for that calendar month, together with a listing of the Lodge members for whom deductions were made, shall be forwarded to the Lodge. Nothing herein shall prohibit Lodge members covered by this Agreement from submitting dues directly to the Lodge.

The Employer shall provide the Lodge with additional payroll deductions for the purpose of the Lodge providing additional employee benefits, providing the Employer's payroll accounting system possesses sufficient capacity and capability for additional deductions.

No other employee organization's dues shall be deducted from any member's pay for the duration of this Agreement.

The Lodge agrees to hold the Employer harmless should any deductions be found to have been unlawfully, illegally or improperly taken. Further, to the extent permitted by law, the Lodge agrees to indemnify the Employer and, at the Employer's request, to provide legal counsel in defending

any action claiming that a deduction has been unlawfully, illegally or improperly made and will further reimburse the Employer for any payments made by the Employer as a result of any finding by an administrative agency or court of law that it has unlawfully, illegally or improperly made deductions.

Section 3.2 Fair Share Fee.

As a consequence of the decision in Janus V. AFSCME, Council 31, et al. (decided June 27, 2018), the City and the Lodge have agreed to remove prior provisions pertaining to the payment of fair share fees by non-members; and, the City and Lodge agree that fair share fees may no longer be deducted from non-members' pay. The City and the Lodge agree further that, in the event there are changes in the law that permit the collection of fees or other financial support from non-members of the Lodge through payroll deduction, the Lodge and the City shall enter into good faith negotiations.

Section 3.3 Bulletin Boards. The Lodge shall be permitted to continue to maintain a Lodge bulletin board at Department headquarters. The location of the board will be determined by the Chief and will be reasonably accessible to all members. Said board shall be provided by the Lodge at its own expense. Lodge bulletins and Lodge material will be permitted to be posted on this board. Non-bargaining unit members shall not be permitted to remove, add to, or alter the material posted on this board. Any material which contains obscene, racially, or sexually offensive information shall be brought to the attention of a Grievance Representative for immediate removal. If no Grievance Representative is available, or fails to immediately remove the item, the item may be removed by the on-duty supervisor, dated, initialed and put in the locked Lodge mailbox in the duty room.

Section 3.4 Meeting Locations. The Lodge shall be permitted, upon providing prior notification to the Chief, to hold meetings for members at police headquarters or other City buildings, rooms, or facilities. The notification required under this Section shall be in writing, shall be delivered to the Chief at least forty-eight (48) hours prior to the time of the meeting, and shall state the date, time, and requested location of the meeting.

The Employer agrees to hold the requested location open for use by the Lodge on the date and at the time specified in the Lodge's notification to the Chief. However, if it is not practicable for the Employer to provide the requested location to the Lodge, the Employer will so notify the Lodge and make every effort to provide for an alternate meeting location in another City building, room, or facility. No member shall attend the above-referenced meetings while on duty without receiving prior approval from the Chief or designee. In the event the Chief or designee are neither present nor available, or it is not practical to contact said individuals, prior approval shall then be obtained from the then on-duty supervisor. No member of the Lodge shall be obligated or asked to divulge to the Employer information discussed at said meetings.

Section 3.5 Ballot Boxes. The Lodge shall be permitted, upon prior notification to the Chief, to place a ballot box at Department headquarters for the purpose of collecting members' ballots on all Lodge issues subject to ballot. Such box shall be the property of the Lodge and neither the ballot box nor its contents shall be subject to the Department's review.

Section 3.6 Use of Intra-Departmental Mail And E-Mail System. The Lodge shall be permitted to utilize the intra-departmental mail system and e-mail system for the purpose of providing information to members pertaining to Lodge business or bargaining unit representation. The Lodge agrees that the use of these systems will be reasonable and limited to providing information that is necessary for the normal conduct of Lodge business or bargaining unit representation. The Lodge also agrees and understands that with respect to the City's e-mail system, there shall be no reasonable expectation of privacy and that all e-mail is subject to monitoring by the City's Department of Information Technology. E-mail messages may be monitored. The City shall refrain from accessing a member's e-mail, unless reasons for doing so are consistent with the City's need for supervision, control, and efficiency in the workplace. The Lodge also understands that e-mail may be a public record subject to disclosure in the same manner as other records of the City, pursuant to applicable law. All intra-departmental mail placed into the mail system by the Lodge shall be the property of the member to whom it is addressed, and such mail shall not be subject to the Employer's review.

Section 3.7 Lodge Business. Lodge representatives shall be permitted to transact official Lodge business at Departmental work sites at all reasonable times, provided that this shall not interfere with or interrupt normal Departmental operations. When possible, a Lodge representative will give advance notice and obtain approval from the Chief or designee if the Lodge intends to use the employer's equipment or property for Lodge business or other non-work related activities. In the Chief's or designee's absence, notice shall be given to and approval obtained from the shift supervisor at the time. Permission of the Chief or designee to use the equipment or property will not be withheld without a valid reason.

Section 3.8 Fraternal Order of Police Convention Attendance. Any member who is a duly elected or selected delegate or alternate to the State or National Conventions of the fraternal Order of Police may use their own appropriate paid leave balances to attend such functions, unless, in the discretion of the Chief of Police, such absence would create undue impact on the operation of the Department.

ARTICLE 4 NON-DISCRIMINATION

Section 4.1 Joint Pledge. As provided by law, neither the Employer nor the Lodge shall discriminate against any member on the basis of age, sex, sexual orientation, gender identity, genetic information, race, color, religion, national origin, disability, political affiliation, military status, veteran status, pregnancy, ancestry, marital status, or application for or participation in the workers' compensation program. The provisions of this Agreement shall be applied equally to all members without regard to any of these factors.

Section 4.2 Employer Pledge. The Employer agrees not to interfere with the right of a member to become and/or remain a Lodge member. There shall be no disparate treatment, interference, restraint or coercion by the Employer or any representative of the Employer against any member because of Lodge membership or because of any lawful activity engaged in by a Lodge member in an official capacity on behalf of the Lodge.

Section 4.3 Lodge Pledge. The Lodge, within the terms of its Constitution and By- Laws, agrees not to interfere with the desires of any member to become and remain a member of the Lodge, or to refrain from Lodge membership. The Lodge agrees to fairly represent all employees of the bargaining unit subject to the provisions and procedures of applicable state law.

ARTICLE 5 MANAGEMENT RIGHTS

Section 5.1 Management Rights. Except as specifically limited by the provisions of this Agreement, the Employer shall have the exclusive right to manage the operations, control the premises, direct the working forces, and maintain efficiency of operation of members. Specifically, the Employer's exclusive management rights include, but are not limited to, the sole right to hire, discipline and discharge for just cause, layoff, and promote; to promulgate and enforce reasonable employment rules and regulations; to reorganize, discontinue, or enlarge the Police Department; to transfer members (including the assignment and allocation of work) within the Department; to introduce new and/or improved equipment, methods and/or facilities; to determine work methods; to determine the size and duties of the work force, the number of shifts required, and work schedules; to establish, modify, consolidate, or abolish jobs (or ranks); and to determine staffing patterns, including but not limited to assignment of members, numbers employed, duties to be performed, qualifications required, and areas worked. The exercise of the above-listed management rights is subject only to the restrictions and regulations governing the exercise of these rights as are expressly provided by the provisions of this Agreement and/or as permitted or provided by applicable law.

A member or the Lodge may raise a legitimate complaint or file a grievance based upon the provisions of this Article.

ARTICLE 6 LABOR/MANAGEMENT MEETINGS

Section 6.1 Meetings. In the interest of sound labor/management relations, to discuss pending issues and/or problems, and to promote a more harmonious labor/management relationship, up to five (5) representatives of the Employer shall meet with up to five (5) Lodge representatives of the Lodge. Members may adjust their work schedules (including work hours and/or work days) with supervisory approval, provided that said changes do not create any overtime obligation to the City. In addition, attendance of members at said meetings cannot take any shift below minimum staffing levels as determined by the Police Department. These meetings will be held at least semi-annually at mutually agreeable dates and times, but may be held more often by mutual agreement.

An agenda will be exchanged by the parties in advance of the scheduled meeting with a list of matters to be discussed in the meeting and the names of the Lodge and Employer representatives who will be attending. All matters on the agenda, will be discussed. By mutual agreement, the Employer and the Lodge may waive the exchange of an agenda.

The purpose of such meeting shall be to:

- A. Discuss the administration of this Agreement;
- B. Discuss grievances, when such discussions are mutually agreed to by the parties;
- C. Disseminate general information of interest to the Employer and the Lodge;
- D. Consider and discuss health and safety matters relating to members; and,
- E. Discuss any other items affecting the labor/management relationship.

ARTICLE 7

BARGAINING UNIT BUSINESS

Section 7.1 Grievance Representatives. Both the Police Officer Unit and the Supervisory Unit shall each select two (2) Grievance Representatives (one of whom shall serve as an alternate in the absence of the other representative). The selection of these representatives shall be approved by the Lodge President who shall notify the City Manager of their selection and any change thereto.

A Grievance Representative, upon giving reasonable notice, and upon receiving approval from, their supervisor, shall be released with pay during regular working hours to investigate grievances, to consult with the Employer in addressing labor/management issues, to process grievances, or to assist in the settlement of disputes. Permission to perform these functions shall not be unreasonably denied.

Section 7.2 Negotiating Committee. On days where negotiation sessions are scheduled, Lodge Team members may adjust their work schedules (including work hours and/or work days) with supervisory approval (which will not be unreasonably denied), provided said change can be made without creating any overtime obligation to the City and it does not take any shift below minimum staffing levels as determined by the Department. The Lodge will notify the Employer of the names and normal work schedules of the Lodge Team Members whose schedules need to be changed prior to the first scheduled negotiation meeting. No Lodge Team Member will be allowed to attend work sessions of the negotiations committee while on duty if their attendance would reduce staffing during said time period below minimum staffing levels as set by the Police Department. No overtime obligation shall be incurred by the City as a result of any member attending work sessions or any other sessions related to negotiations. Time spent by a member attending Lodge Team work sessions, outside their scheduled shift, shall not constitute hours worked.

ARTICLE 8

GRIEVANCE PROCEDURE

Section 8.1 Definition. A "grievance" is an allegation by one or more members, or the Lodge, that there has been a breach, misinterpretation, or improper application of this Agreement. It is not intended that the Grievance Procedure be used to make changes in this Agreement, nor in those matters not covered by this Agreement.

Section 8.2 Jurisdiction. If exclusive administrative relief of a judicial or quasi-judicial nature is provided for by the statutes of the State of Ohio, or of the United States, for review or redress of specific matters, such matters may not be subject to this Grievance Procedure, or be processed hereunder. However, the Grievance Procedure, as set forth in this Article, may be utilized by a member in lieu of appealing a matter to the Dublin Personnel Board of Review. However, once a member elects to pursue an appeal to the Dublin Personnel Board of Review and the Dublin Personnel Board of Review takes jurisdiction over the appeal, the member is thereafter precluded from seeking a remedy under this procedure. Likewise, once a member, with the approval of the Lodge President, elects to pursue an appeal to arbitration, the member is thereafter precluded from seeking a remedy through the Dublin Personnel Board of Review.

Section 8.3 Qualifications. All grievances must be presented at the proper step and time in progression in order to be considered at subsequent steps. The proper step to initiate the grievance is Step 1, unless the occurrence that gave rise to the grievance originates at another step. If the occurrence which gave rise to the grievance originates at another step, the grievant may initiate their grievance at that step at which the occurrence which gives rise to the grievance originates. A grievance shall be considered withdrawn at any point where the grievant submits a written statement to that effect, or where time requirements at any step have lapsed without further appeal by the grievant.

Any grievance not answered by the Employer within the stipulated time limits, may be advanced by the grievant to the next Step in the grievance procedure. All time limits on grievances set forth herein may be extended only by mutual written consent of the Employer and the Lodge.

A grievance may be brought by an aggrieved member covered by this Agreement. Where more than one (1) member desires to file a grievance involving an incident affecting several members in the same or similar manner, one (1) member shall be selected by the affected members to process the grievance. Each aggrieved member who desires to be included in the grievance shall sign the grievance.

Section 8.4 Grievance Form. A written grievance form, which shall provide the following information, shall be used in the processing of all grievances:

- Grievant(s') name(s) and signature(s);
- Date, time and location of grievance;
- Description of incident giving rise to the grievance; and any known witnesses to the event(s) at the time.
- Article or Section of the Agreement alleged to be violated;
- Date grievance was first discussed;
- Name of supervisor with whom grievance was first discussed;
- Date grievance was filed in writing;
- Desired remedy to resolve the grievance; and,
- A number assigned by the Lodge.

The Lodge shall have the responsibility for duplication and distribution of, and its own accounting for, the grievance forms.

Section 8.5 Grievance Procedure. It is the mutual desire of the Employer and the Lodge to provide for prompt adjustment of grievances, with a minimum amount of interruption of the work schedules. Every responsible effort shall be made by the Employer and the Lodge to affect the resolution of grievances at the earliest possible step. In furtherance of this objective, the following procedure shall be followed:

- A. Step 1 - Informal. The grievant shall orally present the grievance to the grievant's immediate supervisor holding the rank of Lieutenant or higher within fourteen (14) calendar days from the time the member becomes aware of the occurrence which gave rise to the grievance. The immediate supervisor shall investigate and provide an appropriate answer within fourteen (14) calendar days following an informal meeting at this Step.
- B. Step 2 - Chief of Police. If the grievance is not resolved in Step 1 and the grievant and/or Lodge Grievance Representative wishes to proceed to Step 2, the grievant and/or Lodge Grievance Representative shall reduce the grievance to writing and shall, within seven (7) calendar days of the answer at Step 1, present the written grievance to the Chief or designee. In investigating the grievance, the Chief or designee may meet with the grievant and Lodge Grievance Representative. The Chief of Police or designee shall investigate and respond in writing to the grievant and Lodge Grievance Representative within fourteen (14) calendar days following the presentation of the grievance to Step 2.
- C. Step 3 - City Manager. If the grievance is not resolved in Step 2 and the grievant and/or Lodge Grievance Representative wishes to proceed to Step 3, the grievant and/or Lodge Grievance Representative shall present the written grievance to the City Manager or designee within seven (7) calendar days from receipt of the Step 2 answer. The City Manager or designee shall investigate the matter and shall meet with the grievant and Lodge Grievance Representative within fourteen (14) calendar days of the receipt of the grievance. A response shall be sent to the Lodge President, the grievant and the Lodge Grievance Representative within fourteen (14) calendar days following the meeting at Step 3.

If a grievance is not satisfactorily resolved at Step 3, the Lodge President may submit the grievance to arbitration. If written notice from the Lodge President of the Lodge's intent to submit the grievance to arbitration is not received by the City Manager or designee within fourteen (14) calendar days following the date of the Lodge President's receipt of response outlined in Step 3, the grievance shall be considered resolved.

- D. Step 4 - Arbitration. After receipt of a notice to arbitrate from the Lodge President, designees of the City Manager and the Lodge President shall attempt to agree on an arbitrator. If this attempt is not successful or is waived, the arbitrator shall be selected by the parties making a joint request to the Federal Mediation and Conciliation Service (FMCS) for a panel list of nine (9) arbitrators with business addresses in Ohio. The parties shall then choose an arbitrator by alternately striking names from the list until such time as one (1) name remains as the arbitrator chosen by the parties.

Prior to beginning the striking procedure, either the Employer or the Lodge may reject the list and submit a request for another list from the arbitration tribunal. Each party may only

reject the list once. In issuing an award, the arbitrator shall be limited to the enforcement of the specific provisions of the Agreement. The arbitrator may not alter, amend, modify, add to or subtract from the provisions of the Agreement.

The question of arbitrability of a grievance may be raised by the Employer or the Lodge before the arbitration hearing on the grounds that the matter is nonarbitrable or beyond the arbitrator's jurisdiction. The first question to be placed before an arbitrator will be whether or not the alleged grievance is within the purview of arbitrability. Thereafter, the alleged grievance will be heard on its own merits before the same arbitrator.

The decision of the arbitrator shall be final and binding, subject to appeal under applicable state law. The arbitrator shall be without authority to recommend any right to relief on any alleged grievance occurring at any other time than the agreement period in which the right originated. The arbitrator shall not establish any new or different wage rates not negotiated as part of the Agreement. In case of discharge, suspension or reduction, the arbitrator shall have the authority to award modification of said discipline. Both the Lodge and the Employer shall share equally in the cost of the arbitration proceedings.

Any member whose testimony is relevant to the arbitration, shall be released with pay to attend the hearing, provided that the hearing is held during the member's regular work hours. The expenses of any non-member witnesses shall be borne by the party requesting the non-member's attendance at the Arbitration Hearing.

The arbitrator shall render in writing their findings and the award as quickly as possible within thirty (30) calendar days after the hearing is closed and post-hearing briefs are submitted. The arbitrator shall forward such findings and award to the City Manager, or designee, and to the Lodge President, or designee.

Section 8.6 Right to Representation. A grievant has a right to representation in all Steps of the Grievance Procedure and shall have an opportunity to fairly present the grievance by presentation of witnesses and/or other pertinent information. The grievant and appropriate witnesses shall be entitled to be present at any Step in the Grievance Procedure and shall not lose pay as a result of such attendance, if a meeting is scheduled during working hours. Grievance meetings shall be scheduled at mutually agreeable times.

Section 8.7 Extension of Time Limits. It is the Employer's and the Lodge's intention that all time limits in the above grievance procedure shall be met. However, to the end of encouraging thoughtful responses at each Step, the Lodge's and the Employer's designated representative may mutually agree, at any Step, to short time extensions. In the absence of such mutual extensions, if no response is forthcoming, the member may request that the particular official at the applicable Step respond in writing. The member will hand deliver a memorandum to both the Chief or designee and the Director of Human Resources or designee requesting such a response. After a written request is received by the applicable official, the applicable official will then respond within seven (7) calendar days from the receipt of the memorandum. If a response is not forthcoming within the seven (7) calendar day period following the written request, the grievance is presumed granted by the City in full and the City shall implement the requested remedy, except if the requested remedy would constitute a violation of law.

ARTICLE 9

INTERNAL REVIEW PROCEDURES

Section 9.1 Scope. This Article shall be followed whenever a member is suspected of or charged with an act which could result in disciplinary action or criminal charges being filed against the member.

Section 9.2 Informal Process for Non-Serious Complaints or Offenses. In recognition of the fact that many types of complaints are of a very minor or non-serious nature which can be resolved at an initial, informal stage, the following procedures may be adhered to where an informal resolution is likely to occur.

Following the receipt of a complaint and it being reduced to writing by the Chief, a Deputy Chief, a Lieutenant, a Sergeant, an Officer-In-Charge, or other sworn command staff, an informal process may be initiated for resolution of minor infractions or non-serious allegations. The investigating supervisor, whether a shift supervisor (Sergeant or Lieutenant), Bureau Commander or Chief, may approach the accused member and attempt to gather the facts about the allegation from the member. At that time, the investigating supervisor shall notify the member of the nature of the complaint. If the complaint cannot be resolved at this informal level, or the accused member elects not to make any statement, the official investigative procedure will be put into place as identified in the remaining sections of this Article. If other, more serious allegations other than those initially charged are raised during the informal investigation, the matter will immediately be transferred to the formal process and be subject to the progressive discipline. Cases processed and resolved at the informal level may result in no more than a letter of reprimand, where a review of the action may be sought by the member. If the matter is not resolved at the informal level, it shall be set for a meeting and be subject to the principles of progressive discipline.

If the matter is not informally resolved, a meeting shall be set within seventy-two (72) hours at the direction of the Chief or designee and with the presence of the accused member and their Lodge Representative or Lodge Attorney, if so desired. The purpose of this meeting is to formally provide the accused member with the complaint in writing. At that time, the supervisor will again be permitted to gather information pertinent to the complaint from the accused member with the presence of a Lodge Representative or Lodge Attorney.

Section 9.3 Notification. At least twenty-four (24) hours prior to any questioning, a member shall be informed of the nature of the investigation (whether disciplinary or criminal) and shall be provided written notice of the specific factual allegations made against the member (except at the informal level referenced in Section 9.2 of this Agreement), including a copy of the written complaint, if applicable. Any request made by the member and/or their Lodge Representative or Lodge Attorney for any records relative to the investigation, not deemed confidential by the Ohio Public Records Act, shall be honored and responded to prior to any questioning of the member. The member and/or their Lodge Representative or Lodge Attorney shall be given a reasonable period of time to review the requested records prior to any questioning of the member.

Section 9.4 Right to Representation. All questioning sessions shall be scheduled so that the member has an opportunity to obtain representation from the Lodge. The Lodge Representative or Lodge Attorney shall be permitted to be present at any questioning and shall be afforded a reasonable opportunity to consult with the member during questioning.

Section 9.5 Conduct of Questioning. As used in this Article, questioning refers to any investigation, internal affairs interview, or interrogation where the member is to be questioned. The following rights are accorded to the member subject to questioning:

A. Any questioning of a member will be conducted at hours reasonably related to the member's shift, preferably during the member's working hours. Such sessions shall be for reasonable periods of time, and time shall be allowed during such questioning for rest periods and for a member's attendance to physical necessities.

B. If either felony or misdemeanor charges are contemplated, the member shall be informed of their constitutional rights in advance of any questioning.

C. Before a member may be charged with insubordination or like offenses for refusing to answer questions or participate in any investigation, the member shall be advised that such conduct, if continued, may be made the basis for such a charge; except that a member who refuses to answer questions or participate in any investigation shall not be charged with insubordination or like offense for such refusal as premised on an exercise of their constitutional rights in a criminal matter.

D. Except at the informal level as referenced in Section 9.2, the Employer shall make reasonable attempts to tape record or get a written statement from the affected member and any potential witnesses to the matter under investigation. Tapes may also be made of the member's interview by the member and their Lodge Representative or Lodge Attorney. The member and their Lodge Representative or Lodge Attorney will be afforded the opportunity, upon written request directly to the Chief or designee, to listen and to make personal notes regarding a tape or written statement.

E. Any statements or evidence obtained in the course of questioning through the use of threats, coercion or promises other than notification that the member may be charged with insubordination, shall not be admissible in any subsequent criminal action or internal proceeding. However, explaining to a member that potential corrective action could result if the member continues to refuse to answer questions or participate in an investigation, shall not be considered as such threats, coercion or promises, subject to provisions of this subparagraph.

F. In the course of questioning, a member may only be given a polygraph examination or other purported truth verification examination with their consent. The results of this examination cannot be used in any subsequent criminal action. Where consent is given, a polygraph examiner shall be chosen by mutual agreement of the Employer and the member.

Section 9.6 Access to Tapes and Documents. Once the investigation is completed, and no later than two (2) days after requested and reasonably in advance of any pre-disciplinary conference, the member who is subject to questioning and their Lodge representative or

Lodge attorney will be provided access to transcripts, records, written statements, and tapes pertinent to the investigation, including transcripts of questioning and responses to polygraph examination.

Section 9.7 Application to Witness. Sections 9.4 and 9.5 shall be applicable to any member interviewed as a witness to a matter under investigation pursuant to this Article, unless the investigation is relating to criminal charges. Such a member shall also be advised prior to any questioning of the nature of the investigation (whether disciplinary or criminal) and shall be provided information regarding the incident involving the member under investigation.

Section 9.8 Citizen Complaint. In order for a citizen complaint to be considered as possible grounds for disciplinary action, it must be reduced to writing, signed by the citizen made with an attestation of truth within thirty (30) calendar days after the date of the alleged event complained of unless the allegation can be independently verified by confirmable corroborative evidence. (e.g. video, audio, other valid sources etc.) If the incident alleges conduct which, if true could lead to criminal charges, the thirty (30) day requirement shall not be applicable.

Section 9.9 Anonymous Complaints.

Process for anonymous complaints:

Minor Allegation

1. Complaint form is filled out and complainant is advised of the option to initiate a formal investigation.
2. Supervisor advises the officer/employee of the allegation, records any comments on the complaint form, and discusses the incident, with no further investigation.
3. Disposition box marked as "unfounded because no further investigation possible".
4. Redacted complaint is filed in Bureau Commander's yearly complaint file.

NOTE: If the investigating supervisor can independently confirm the allegations at the time of the complaint without the required documentation from the original complainant, the investigatory process should move forward to formal conclusion.

Serious Allegation

1. Complaint form is filled out and complainant is advised of the option to initiate a formal investigation.
2. Complaint is forwarded to a Bureau Commander who, at the direction of the Chief of Police, assigns the complaint for follow-up.
3. Supervisor advises the officer/employee of the allegation, records any comments on the complaint form, and discusses the incident.

4. Disposition box marked as "unfounded because no further investigation possible".
5. Complaint is filed in Bureau Commander's yearly complaint file.

NOTE: If the investigating supervisor can independently confirm the allegations without the required documentation from the original complainant, the investigatory process should move forward to formal conclusion.

Criminal Complaint

1. Complaint form and criminal investigation form is filled out.
2. Complaint is forwarded to a Bureau Commander who, at the direction of the Chief of Police, assigns the investigation.
3. Disposition finding (improper conduct, insufficient evidence, policy failure, proper conduct, or unfounded complaint).
4. Disposition through review and approval process.
5. Criminal and/or departmental charges filed, if appropriate.
6. Notation of complaint and finding on "Officer Complaint Tally Sheet" (OCTS), kept with supervisor's evaluation notes.
7. Complaint filed in I.A. files.
8. If appropriate, discipline administered per department guidelines.

ARTICLE 10 DISCIPLINE

Section 10.1 Discipline for Cause. The tenure of every member shall be during good behavior and efficient service. No member shall be reprimanded, suspended, reduced in pay or rank, or removed, except for grounds stated in this Agreement. The Employer may take disciplinary action against any member only for just cause. The Employer may take this type of action while the member is on duty; working under color of employment for the Employer; or off-duty representing themselves as a member of the Department or while engaged in conduct that might affect the member's ability to perform their duties. The member may not be disciplined for actions on their own personal time that do not reflect directly on the Department, or do not violate any State or Federal statutory provisions, or off-duty employment Departmental Standards of Conduct, Rules and Regulations. Incompetency, inefficiency, dishonesty, drunkenness, immoral conduct, insubordination, discourteous treatment or neglect of duty, absence without leave, or any conduct unbecoming an officer, or any other acts of misfeasance, malfeasance or nonfeasance, or violations of any Dublin Police Department General Orders, shall be cause for disciplinary action and may subject a member to disciplinary action.

Section 10.2 Progressive Discipline. Except in instances where a member engages in serious misconduct, discipline will be applied in a progressive manner. Progressive discipline shall take into account the nature of the violation, a member's record of discipline, and the member's record of conduct.

Ordinarily, progressive disciplinary action will involve an oral reprimand before a written reprimand, a written reprimand before a suspension, and a suspension before reduction in pay or rank or removal for a repeated or related offense. The commission of a repeated or related offense for which an oral reprimand has been given permits, but does not require, the Employer to issue a written reprimand. Should a written reprimand be issued, the Employer is permitted, but not required, to issue a suspension for the commission of a related offense of the same nature. Should a suspension be issued, the Employer is permitted, but not required, to reduce in pay or rank or remove the member for the commission of a repeated offense of the same nature.

In all instances of discipline, the Employer shall only impose a disciplinary penalty commensurate with the offense, which, where practicable, may assist the member in correcting whatever action or behavior is deemed inappropriate. Nothing herein precludes the Employer from utilizing positive steps, including counseling, to correct a member's inappropriate action or behavior.

When disciplinary action is first proposed, the member or their Lodge Representative will be allowed an opportunity, if requested, to meet with the appropriate supervisor or discuss the proposal.

Section 10.3 Disciplinary Action. The prerogative to issue oral reprimands and written reprimands is solely within the Departmental Chain of Command. In any instance where the possibility exists for oral or written reprimands to be issued for actions occurring while an OIC (Officer-In-Charge) is the supervisor, the OIC shall take immediate remedial corrective action to ensure that normal shift operations continue in a proper manner. The incident shall then be documented and forwarded to the normal shift supervisor for review and appropriate action. If the normal shift supervisor is unavailable for a period of forty-eight (48) hours or longer following the incident, said documentation will be forwarded to the Operations/Services Bureau Commander for review and appropriate action. The OIC, in their report, shall document the operational corrective action taken and any relevant facts regarding the precipitating incident. The OIC may also recommend follow-up action to be taken by the supervisor. Where there is reason to believe that a member is guilty of an offense which might lead to suspension, reduction in pay or rank, demotion, or removal, the Operations/Services Bureau Commander has the responsibility to prefer charges and the proposed penalty against the member, which charges shall be heard in a Pre-Disciplinary Conference, as established in Section 10.4. In preferring charges, the Operations/Services Bureau Commander shall provide the member with written notice of the charges and provide the member access to all evidence supporting the charges.

Section 10.4 Pre-Disciplinary Conference. When charges are preferred by the Operations/Services Bureau Commander, a Pre-disciplinary Conference shall be scheduled to give the member an opportunity to respond to the charges. Pre-disciplinary Conferences will be conducted by the Chief of Police, or designee.

Not less than seven (7) calendar days prior to the scheduled Pre-disciplinary Conference, the Chief will provide the member with written notice of the preferred charges. The member may

choose to: 1) appear at the Conference to present an oral or written statement in their defense; 2) appear at the Conference with a Lodge Representative and/or Lodge Attorney; or 3) elect to waive (in writing) the opportunity to have a Pre-disciplinary Conference.

At the Pre-disciplinary Conference, the Chief of Police, or designee, will ask the member or the member's Lodge Representative and/or Lodge Attorney to respond to the preferred charges. At the Pre-Disciplinary Conference, the member, or their Lodge Representative and/or Lodge Attorney, shall be permitted to offer testimony and evidence in the member's defense, call witnesses material to the member's defense, and confront the member's accusers. The member or their Lodge representative and/or Lodge attorney shall provide a list of witnesses to the Chief of Police, or designee, as far in advance as possible, but no later than two (2) calendar days prior to the Pre-disciplinary Conference. It is the member's responsibility to notify their witnesses that their attendance at the Pre-disciplinary Conference is desired.

A written report will be prepared by the Chief of Police, or designee, summarizing the findings of fact and disciplinary penalty to be imposed, if any. A copy of this written report will be mailed or hand-delivered to the member or their Lodge Representative and/or Lodge Attorney and the Lodge President within fourteen (14) calendar days following the Conference. Pre-Disciplinary Conferences shall be tape-recorded. A copy of the recording shall be furnished to the member their Lodge Representative or Lodge Attorney, upon request, within forty-eight (48) hours of the close of the Conference. The member may also record the Conference.

Any imposition of discipline shall be accomplished in such a manner that will not embarrass the member before other members or the public.

Section 10.5 Appeal. A member may elect to appeal the disposition made by the Chief of Police to the City Manager, or designee. The decision of the City Manager can be appealed directly to arbitration, with the approval of the Lodge President, as provided in Section 8.5(D) of this Agreement or, where applicable, to the Dublin Personnel Board of Review. Written notice from the Lodge President of the Lodge's intent to file for Arbitration must be received by the Chief of Police, or designee, within fourteen (14) calendar days of the Lodge President's, or their Office Staff's, receipt of the written disposition by the Chief of Police, or designee.

ARTICLE 11

PERSONNEL FILES

Section 11.1 Unfavorable/Inaccurate Documents. If an unfavorable or inaccurate statement or notation is placed in a member's official personnel file, the member shall be given the right to place a statement of rebuttal or explanation in their file.

Section 11.2 Copies of Records in Personnel Files. A copy of any record or document which has been placed in and/or removed from the member's personnel file shall be provided to the member at the time of its placement or removal, except where the record or document originates from the member or has been otherwise provided to the member. If removed, the copy shall be signed and dated. No anonymous material of any type shall be included in the member's official personnel files, or files of any type. Any record, in any file created or maintained by the City, except those deemed confidential by the Ohio Public Records Act, shall be accessible to the member upon request.

Section 11.3 Duration of Counseling Statements/Disciplinary Records. In lieu of disciplinary action a member may receive a counseling statement directed to correct a work deficiency or to improve work performance. Counseling statements and documented oral reprimands may be retained for no more than one (1) year from date of issuance by either the Chief or a supervisor, outside of the member's personnel file. Counseling statements and documented oral reprimands shall cease to have any further force and effect for future disciplinary action no later than six (6) months from date of issuance or when the Police Department has official knowledge of the incident which gave rise to the counseling/discipline, whichever is later, provided that no further repeated or related offenses have occurred resulting in disciplinary action; however such counseling statements and documented oral reprimands may be used within one (1) year of issuance for performance evaluation purposes. Counseling statements and documented oral reprimands are subject to removal from the Chief's or other supervisor's files one (1) year after issuance; however, it shall be the individual member's responsibility to review the files and identify the documents subject to removal. Written reprimands shall be maintained in the member's personnel file. A written reprimand shall be removed from a member's personnel file no later than one (1) year after issuance, provided no further repeated or related offenses have occurred. Written reprimands shall cease to have any further force and effect no later than one (1) year after the date of incident or when the Police Department has official knowledge of the incident which gave rise to the discipline, whichever is later, provided that no further repeated or related offenses have occurred resulting in disciplinary action.

In the event a repeated or related offense occurs during the appropriate time limit(s), the initial reprimand shall be maintained in the member's personnel file for the duration of the time period for which the most recent documented disciplinary action will remain in effect for purposes of disciplinary action. Documentation of repeated offenses shall continue for appropriate time limit(s) of the latest reprimand of a same or related nature.

Any suspension of less than thirty (30) days shall be removed from a member's personnel file after a period of three (3) years from the date of its issuance, provided no further corrective action of the same or related nature has occurred in the interim period. In those cases where further corrective action occurs of the same or a related nature, the first suspension will remain in the file for an additional one (1) year period.

Written reprimands and suspensions which are subject to removal from a member's personnel file shall be removed only upon request of the member. The removed documents shall be marked for destruction by the Director of Human Resources and be forwarded directly to the City's Records Management Officer for actual destruction. Upon destruction, the City's Records Management Officer will issue and forward a certificate of destruction to the Director of Human Resources who will in turn provide a copy of the certificate to the member.

Section 11.4 Review of Personnel Files. Every member shall be allowed to review their personnel file at any reasonable time upon written request to the Division of Human Resources. Access to personnel files will be governed by Ohio law. However, if a file is requested, the Employer will make a reasonable attempt to notify the affected member. The affected member will then be given immediate access to their personnel file no later than the next business day after the request. The Employer will make every effort to ensure that the file is reviewed by the member before granting the public request. In the event a member wishes to allow a Lodge

Representative or Lodge Attorney to review their file, the member shall provide appropriate written notification to the Division of Human Resources authorizing the review of their file, prior to such review taking place. Appropriate notification shall consist of a written statement signed by the member whose file is to be reviewed.

ARTICLE 12

DIRECTIVES/GENERAL ORDERS

Section 12.1 Directives/General Orders. The Employer agrees that all General Orders, Special Orders, or any future directive that would replace or modify a General Order or Special Order shall be reduced to writing and provided to all members in advance of their enforcement. Any charge by a member that a General Order, Special Order, or future directive that would replace or modify a General Order or Special Order is in violation of this Agreement, or has not been applied or interpreted uniformly to all members, shall be a proper subject for a grievance.

ARTICLE 13

POLITICAL ACTIVITY

Section 13.1 Political Activity.

In addition to other rights permissible by law:

- A. A member may participate in the Lodge's Political Screening Committee where such participation is directed towards the endorsement and support of partisan political candidates solely on behalf of the Lodge, provided that the member undertakes such participation while off-duty, while not in identifiable uniform, and does not represent that their participation is either undertaken in their official capacity as a member of the Employer or is sanctioned by the Employer.
- B. A member is permitted outside the City of Dublin to actively participate in partisan political activity, provided that a member undertakes such activity while off-duty, not in identifiable uniform, and does not represent that such activity is either undertaken in their official capacity as a member of the Employer or is sanctioned by the Employer.
- C. A member is permitted within the City of Dublin to exercise their rights as a citizen to express their personal opinions and to cast their vote. However, a member shall not:
 - 1. Orally or in writing solicit or in any manner be concerned with soliciting any assessment, subscription or contribution of any type for any political party or political purpose whatsoever from any person holding a position in the service of the Employer;
 - 2. Make any contribution to the campaign funds of any candidate for a City of Dublin elective office for the actual or apparent purpose of influencing said persons or receiving favors of any nature from said persons; and,
 - 3. Become actively involved in the elective process or campaigns for any City of Dublin elective office, except as would be applicable under paragraph A of this Section.

ARTICLE 14

SENIORITY

Section 14.1 Seniority Defined. For purposes of this Agreement, "Departmental seniority" shall be defined as a member's total continuous service from the date of initial hire as a regular full-time Police Officer. "Rank seniority" in a member's respective rank commences on the date of the Member's appointment to or promotion to the rank held by a member. Continuous service shall reflect the uninterrupted service of a member as calculated by years/days of service. Continuous service shall be interrupted only when a "break in service" occurs. A "break in service" only occurs in the following instances:

- A. Separation because of resignation, except where a member is rehired within thirty (30) days of resignation;
- B. Removal;
- C. Failure to return from an authorized leave of absence; or,
- D. Failure to respond to a notification of recall from layoff.

Should more than one (1) member be hired or promoted on the same day, seniority preference will be determined by the member's ranking on the Chief's final candidate list. Previous methods for determining seniority prior to the effective date of this Agreement shall not be affected.

A "break in service" shall not occur if a member is reinstated due to the disaffirmance of removal or disaffirmance of or recall from a layoff. A member who has a "break in service" and who is subsequently rehired or reinstated, shall not receive continuous service credit for the time spent during the "break in service"; however, the member shall receive continuous service credit except for the period in time in which the "break in service" occurred, if subsequently rehired or reinstated within two (2) years.

Section 14.2 Application of Seniority. When vacation leaves are to be scheduled on an annual basis or where casual leave is to be scheduled, and where in these instances there are two (2) or more members with the same request, the member with the highest Departmental seniority shall be granted the request, if the request is granted at all, with the understanding that a minimum of one (1) Patrol supervisor (Lieutenant or Sergeant) will be maintained on each shift.

Casual leave requests will be filled by Departmental seniority regardless of rank, provided that a minimum of one (1) Patrol supervisor (Lieutenant or Sergeant) shall be maintained on each shift.

Section 14.3 Filling of Specialized Assignments. Whenever a vacancy occurs in full-time specialized assignments, the Department shall post a Job Assignment opening for fifteen (15) calendar days and shall allow any interested member within the same rank to apply within the posting period. The Department shall provide notice on the job posting as to any specialized training and/or technical skills which will be required for the assignment once the assignment is made. In filling the job assignment, the Department shall give consideration to all applicants who

apply. The following criteria for selection shall be used: ability, work performance, and seniority based upon time in rank. Where ability and work performance are relatively equal in the opinion of the Chief, seniority based upon time in rank shall be the deciding factor.

Section 14.4 Rotation of Job Assignments. The following provisions apply to full-time rotational specialized assignments.

A. All full-time specialized assignments are subject to rotation unless the Chief determines that the effective operation of the Department dictates otherwise.

B. Any member currently in an assignment, which was not designated as a rotational assignment when originally posted, shall be given at least four years' prior notice of the date upon which their assignment shall become rotational.

C. Rotational assignments will be filled on a time-line which allows for the incumbent to participate in the next annual shift selection process when rotating back to patrol.

D. At the end of any rotational assignment, the incumbent may remain in the assignment for an additional period of time if no other members are interested. Such a position shall be posted annually until the incumbent is relieved of their duty. The incumbent shall not be required to remain in the position for more than two (2) additional years.

E. A member serving in a rotational assignment is not eligible to assume a different rotational assignment until which time they have fulfilled the term of their initial current rotational assignment.

F. Members who have served one complete rotation in a current rotational assignment may compete for one additional rotation in the same specialized assignment. Such members may be selected for additional consecutive assignments, provided however, that if the member is not selected for an additional consecutive assignment, such decision shall be made at the sole discretion of the Chief. Once a member has completed two consecutive rotations in the same specialized assignment, that member will not be eligible to apply for a third consecutive rotation without a one-year break in service within that same specialized assignment. A specialized assignment rotation shall be four (4) to six (6) years in duration.

Any member who is assigned to a rotational specialized assignment as of January 1, 2020 will remain in their assigned position for the prior specified duration of their current assignment. Thereafter, the member will be eligible to apply for one (1) further rotation in that assignment regardless of how many rotations the member has served in the position.

G. Members whose full-time rotational specialized assignments (i.e.: CIU investigator, CIU traffic officer, Juvenile Officer, Detective, Community Education Officer, etc.) are eliminated by the City and are returning to patrol, shall maintain equivalent hours and days off until the next shift bidding process takes effect, unless an alternative schedule is mutually agreed upon by the member and management. The return of these officers to patrol is not intended to constitute a vacant or new position as referenced in section 14.5. The criteria for this decision shall be seniority based upon continuous time within the specialized assignment position. The

application of seniority based upon continuous time within the specialized assignment position is only applicable to the elimination of a rotational specialized position.

Section 14.5 Filling of Shift Assignments. Assignments to shifts and shifts slots shall be made on an annual basis. Assignments to shifts and shift slots shall be posted for a fifteen (15) calendar day period and shall be made by November 30 for the following calendar year by means of seniority based upon time-in-rank, unless the Chief determines that the effective operation of the Department dictates that seniority not be the determining factor for shift assignments and shift slots. If a position becomes vacant and is subsequently filled, or a new position is added prior to September 1st of each year, the vacancy shall be posted for a five (5) calendar day period and any interested member of the same rank may apply. The assignment will be filled by rank seniority. Once the initial vacancy or newly added position is filled, no further bidding is required. If a vacancy occurs or a new position is added after September 1st of each year, the Chief has the discretion to fill the vacancy or newly added position for the remainder of the calendar year. A member within the rank of Police Officer who is serving in their initial probationary period shall not have an opportunity to compete for new shift assignments or shift slots until the first annual posting procedure after the conclusion of the member's initial probationary period.

On any patrol shifts where there are both Lieutenant(s) and Sergeant (s) assigned, Lieutenant(s) shall bid first on patrol shift slots (with assigned days off) and the Sergeant (s) shall bid for the slots which remain after the Lieutenant(s) complete bidding.

Section 14.6 No Posting Response. In instances where a specialized assignment, or shift assignment, is posted and no member's responds to the posting, the Chief, subject to the provisions of Section 14.4 for specialized assignments, reserves the discretion to make such assignments based upon the needs of the Department.

Section 14.7 Patrol Scheduling Standards. The following standards shall apply to scheduling of Officers, Sergeants and Lieutenants in Patrol assignments:

A. Regular Non-Rotating Shift

Each Officer, Sergeant, and Lieutenant shall be assigned to a non-rotating shift. The shift assignment shall include regularly assigned consecutive hours of work during a workday, regularly assigned consecutive workdays, and regularly assigned consecutive days off. "Regular Shift", for purposes of Section 14.7, shall be defined as the Officer's/Sergeant's/Lieutenant's normally assigned schedule as determined by either the annual bidding process conducted prior to the beginning of each calendar year, or as assigned by the Chief for new hires during the year (as identified in Section 14.5.).

B. Reassignment of Hours, Workdays, or Days Off

Regularly assigned hours of work, regularly assigned workdays, or regularly assigned days off may only be varied by the City as follows:

1. For mandatory or remedial training purposes, for any members affected by any related schedule changes with at least fourteen (14) calendar days' notice in advance of any such reassignment; provided, however, that

- a. for bi-annual, mandatory, in-service training, a member assigned to patrol (with the exception of members conducting the training), shall have no more than three (3) schedule reassignments per work week and no more than five (5) schedule reassignments per training block.
 - b. Members may not be reassigned to cover a shortage that occurs as training related shortages – i.e. reassignments may be made from members on adjacent shifts to cover the original shortage, but shortages resulting from such reassignments may not be filled by reassigning any other member.
2. For a member who is conducting or attending non-mandatory or non-remedial training, with at least fourteen (14) calendar days' notice in advance of any such reassignment;
3. At the Officer's/Sergeant's/Lieutenant's voluntary request;
4. In unforeseen emergency situations, including coverage for absences of ten (10) working days or more;
5. In the case of sick leave call-offs or in the case of a member's twice or thrice annual use of eight (8) hours of personal leave as outlined in Section 25.1 (Personal Leave), in which case the Department retains the right to hold Officers/Sergeants/Lieutenants over from the previous shift, or call Officers/Sergeants/Lieutenants in early in advance of their scheduled shift. Every reasonable effort will be made to limit the duration of an Officer's/Sergeant's/Lieutenant's hold-over or call-in to four (4) hours or less.
6. To accommodate the request of another Officer/Sergeant/Lieutenant whose request for time off has been granted except for "Casual Leave" (defined as personal leave, compensatory time, or non-annual vacation time), provided that a) the reassignment is made with at least fourteen (14) calendar days advance notice, b) that without the reassignment minimum staffing would not be maintained, c) the reassignment is not made on a holiday, as defined in Section 24.1 Paid Holidays, or the day immediately preceding and the day immediately following these holidays and d) that reassignments are equitably distributed among all Patrol Officers. An Officer/Sergeant/Lieutenant may voluntarily agree to work a reassignment regardless of whether the foregoing requirements have been met.
7. A Patrol supervisor may be held over four (4) hours or be called in early four (4) hours to cover another Patrol supervisor's mandatory training leave or sick leave if that absence reduces the shift below minimum staffing. Preferably, these shift adjustments will involve another member of the same rank (i.e., Lieutenant for Lieutenant or Sergeant for Sergeant).

C. Time Off Between Shifts

During the workweek, each member shall be afforded at least twelve (12) hours off duty from the end of any shift (and any contiguous overtime thereto) to the beginning of their next shift (and any contiguous overtime thereto). This twelve (12) hours of time off may only be waived with the member's agreement and/or subject to the exceptions set forth in paragraph (E) of this Section.

D. Days Off

Each member shall receive at least sixty (60) hours of time off from the last day of their workweek (and any contiguous overtime thereto) to the beginning day of their next workweek (and any contiguous overtime thereto). This sixty (60) hours of time off may only be waived with the agreement of the member and/or pursuant to the exceptions in paragraph (E) of this Section.

E. Exceptions

Paragraphs C. and D. of this Section shall not apply in the following cases:

1. Four (4) Special Events as follows: St. Patrick's Day, Dublin Irish Festival, Independence Day, and the Memorial Tournament.
2. No more than three (3) Special Events per calendar year, as designated by the City.
3. Court Appearances.
4. City required and voluntary training.
5. Unusual special details (e.g. traffic control for major capital improvement projects, security details, etc.).
6. Unforeseen emergency situations, which would not include sick leave mark-offs.
7. For planned special events at the Muirfield Village Golf Club lasting five (5) days or longer, and with at least 30 days advanced notice, an member's shift may be altered and/or extended to meet operational needs to include twelve (12) hours shifts and altered days off.

ARTICLE 15

EMPLOYEE ASSISTANCE PROGRAM

Section 15.1 Employee Assistance. The Employer and the Lodge recognize that a wide range of personal difficulties/problems in the lives of members may affect work performance and that most personal difficulties/problems can be successfully resolved provided they are identified and referred to an appropriate source of assistance. The Employee Assistance Program (EAP) is provided by the Employer to assist members and their family members in dealing with a wide range of personal difficulties/problems. This range of personal difficulties/problems may include mental, emotional, financial, family, marital, employment-related stress, drug abuse, alcoholism, legal, elder-care/aging, spiritual, career, illness/disability, or other such difficulties/problems. The purpose of the EAP shall be to help members and their immediate family members deal with the kinds of difficulties and problems identified above by linking them with resources that can provide appropriate help; to reduce job performance problems; and to retain valued members. When a member or someone in their immediate family is experiencing a problem, whether or not such

problem affects the member's job performance, the member and/or immediate family members are strongly encouraged to seek assistance through the EAP.

Section 15.2 Coverage Terms & Conditions. Under the coverage terms of the EAP, members and/or their immediate family members shall each be entitled to unlimited assessment and referral and a maximum of six sessions per problem, at no cost to the member or family member, for problems amenable to short-term counseling intervention. Members and/or family members are encouraged to access available benefits, as provided by the City medical benefits program, for counseling/treatment beyond the six session limit.

Section 15.3 Other EAP Terms & Conditions. The Employer and the Lodge agree that:

- A. Participation in the EAP shall be strictly voluntary, except where the completion of an EAP is required to satisfy the conditions of an imposed disciplinary measure or an agreement to complete an EAP in lieu of discipline. However, members and their immediate family members who have problems they feel may affect their health, well-being, and/or the member's job performance, are encouraged to contact the EAP.
- B. Members and their immediate family members shall receive an offer of assistance to help resolve such problems in an effective and confidential manner. All EAP issues shall be handled in a confidential manner by the EAP provider consistent with federal and state law. No information concerning the nature of individual personal problems will be released without proper written consent from the member and/or immediate family member.
- C. Nothing in this Article shall be interpreted as constituting a waiver of the Employer's responsibility to maintain discipline or its right to take disciplinary action in accordance with provisions of this Agreement. Normal disciplinary procedures shall remain unaltered and use of the EAP shall not alter the responsibility of members to maintain an acceptable level of performance or acceptable behavior/conduct.
- D. EAP-related appointments scheduled during normal work hours shall be scheduled within the framework of the Employer's existing leave policies. Depending on the circumstances involved, one or more forms of leave may be appropriate to attend such appointments (i.e. sick, vacation, compensatory time, personal, etc.). Due to existing procedures requiring the member to provide a reason justifying the use of sick leave, the member may not wish to use said leave for such appointments, as providing a reason for the usage of said leave may disclose information the member wishes to remain confidential. If the member chooses to request sick leave, the member is hereby advised that in providing a justifiable reason for sick leave usage, the member is voluntarily disclosing information. Members are hereby advised that if this is a concern, they should request another form of leave where providing a reason for said leave usage is not required (i.e. vacation leave, compensatory time, personal leave, etc.), or seek to schedule EAP-related appointments outside of normal work hours. Flexible appointment hours shall be made available to members by the EAP provider.
- E. Supervisory personnel may encourage the use of the EAP, recognizing the fact that many job performance difficulties may be related to a personal problem. However, supervisory personnel shall refrain from diagnosing personal problems or recommending specific solutions other than referral to the EAP.

- F. Supervisory training is critical to the success of the EAP. In that regard, the Employer will provide supervisory training, to be scheduled at the discretion of the Employer, to enhance the knowledge of supervisory personnel concerning the proper methods to be used when dealing with a member who is experiencing personal or work-related distress.
- G. The Employer shall reserve the right to contract, at its sole discretion, with the company/organization of its choice that will, in its judgment, provide the most cost effective, meaningful, and responsive service to the Employer and members.

ARTICLE 16 LAYOFFS

Section 16.1 Action. When the Employer determines that a temporary layoff is necessary, the Employer will notify the affected members forty-five (45) days in advance of the layoff. The youngest member in point of service shall be first laid off and any layoffs thereafter shall be by reverse seniority. The Employer agrees to discuss with the Lodge the impact of the layoff on members prior to the Employer's notification to the affected members.

Section 16.2 Recall and Reinstatement. When members are laid off, the Employer shall create a recall list. If a recall list exists when a vacancy occurs, the Employer shall recall members from such list prior to attempting to fill such vacancy with a new appointment. The recall shall be according to seniority beginning with the most senior member and progressing to the least senior member. A member shall be eligible for recall for a period of three (3) years after the effective date of the layoff.

Notice of recall from a layoff shall be sent to the member by certified mail with copies to the Lodge. The mailing shall be to the last mailing address provided by the member and the member has an obligation to keep the Employer advised of the member's current mailing address.

The recalled member shall have fourteen (14) calendar days following the receipt of the recall notice to notify the Employer of their intention to return to work and shall have forty-five (45) calendar days following the receipt of the recall notice in which to report to duty, unless a different date is otherwise specified.

ARTICLE 17 MISCELLANEOUS

Section 17.1 Safe Equipment. The Employer shall furnish and shall maintain, in good working condition, the necessary tools, facilities, vehicles, supplies and equipment required for members to safely carry out their duties. Members are responsible for reporting unsafe conditions or practices, for avoiding negligence, and for properly using and caring for tools, facilities, vehicles, supplies, and equipment provided by the Employer.

Section 17.2 Agreement Copies. As soon as is possible following the signing of this Agreement, the Employer and the Lodge shall have printed sufficient copies of this Agreement.

The actual cost of printing this Agreement, and any future printing beyond the copies specified herein in an amount the parties may later agree as necessary, shall be shared equally by the parties. The Lodge shall be responsible for distributing copies to current members and the Employer shall be responsible for distributing copies to new members who are hired during the term of this Agreement.

Section 17.3 Mail. Mail which is addressed to a member shall not be opened by anyone other than the member to whom it is addressed, unless the member has specifically provided written authorization to the contrary or it is reasonable to assume that the contents of the mail may relate to a work-related court appearance or deposition. If someone other than the member to whom the mail is addressed opens the mail, they will sign their name, date and time on the outermost piece of that mail. Mail that is not work-related shall not be sent to a member at any public facility operated by the Employer. Members will not be responsible for any non-work-related mail that they did not initiate.

Section 17.4 Reimbursement for Expenses and Travel. A member, whenever authorized to engage in or to undertake official business for the Employer, shall be permitted to use a City-issued card for reasonable and necessary expenses and travel. If practicable, the member shall be allowed the use of one of the Employer's vehicles for travel and the use of a City-issued card for gas purchases. If not practicable, reimbursement for authorized use of a personal automobile will be at the current rate established by the Internal Revenue Service (IRS). It is recognized that the Employer has the right to promulgate reasonable regulations pertaining to reimbursement for expenses and travel. Where overnight lodging is provided at the Employer's expense, a member will only be reimbursed for mileage to and from the training facility on one occasion each way unless otherwise approved or directed by the Chief. All other travel is considered to be non-work-related and non-reimbursable.

ARTICLE 18

SUBSTANCE ABUSE AND TESTING

Section 18.1 Purpose. The Employer and the Lodge recognize that the ability of a member to properly perform their duties depends, in part, on a workplace which is free of substances abuse. In an effort to promote public safety, to provide members who may be drug or alcohol dependent with an opportunity for treatment and for remaining productive members of the Police Department, and in recognition that substance abuse is a problem which, depending on individual circumstances, may require intervention, rehabilitation, or discipline, it is the purpose of this Article to provide a method for responding to the risks presented by the presence of substance abuse in the workplace by:

- dealing with incidents of substance abuse which present a reasonable likelihood of significant risk to member's, the general public, or other employees of the Employer;
- providing assistance to a member with drug or alcohol dependency problems; and,
- disciplining a member whose satisfactory work performance is adversely affected by substance abuse.

Section 18.2 Responsibility. Although it is the responsibility of every member to be alert to potential incidents of substance abuse in the workplace, it is the primary responsibility of supervisors to initially respond to such incidents, particularly where circumstances are present which pose a reasonable likelihood of significant risk to the public safety. Supervisors shall take such action, not inconsistent with this Article, as they deem appropriate to eliminate the likelihood of significant risks associated with any incident of potential substance abuse.

Section 18.3 Supervisory Training. The Employer agrees to provide supervisory training to assist supervisors in identifying illegal drug use by members. All supervisors shall receive at least two (2) hours of initial skill-building and information sharing sessions, with at least one (1) hour of training occurring within a reasonable timeframe of a current member becoming a supervisor or from the date of hire of a supervisor. In subsequent years, supervisors who have already received two (2) hours of initial training, will receive two (2) hours of additional training to serve as a refresher and address new concerns. This training shall be conducted by a qualified trainer holding one of the following credentials:

- Substance Abuse Professional (SAP);
- Certified Employee Assistance Professional (CEAP);
- Certified Chemical Dependency Counselor (CCDC III);
- Ohio Certified Prevention Specialist (OCPS);
- Ohio Certified Prevention Consultant (OCPC).

The training shall cover the following subjects:

- The physical, behavioral, and the performance indicators of drug use/abuse;
- The effects of drug use/abuse;
- Recognizing performance deficiencies caused by drug use/abuse;
- Confronting members with suspected drug use/abuse.

Section 18.4 Non-Supervisor Training. The Employer shall also provide non-supervisory training regarding substance abuse issues and information about the City's employee assistance program (EAP). All non-supervisory members shall receive at least one (1) hour of educational awareness initially on substance abuse issues and one (1) hour annually thereafter. New members shall receive educational materials and information about this policy within a reasonable timeframe after initial hire.

Section 18.5 Definitions. The following definitions shall govern this Article:

- "Under the influence" means that the member is adversely affected in the satisfactory performance of their duties by any illegal drug or alcohol, or the combination of any illegal drug and alcohol.
- "Legal drug" means prescribed drugs or over-the-counter drugs which have been legally obtained for the user and are used for the purpose for which they were prescribed and manufactured.
- "Illegal drug" means any drug (1) which is not legally obtainable, or (2) which is legally obtainable but has not been legally obtained and prescribed drugs not being used for

prescribed purpose. Illegal drug includes, without limitation, cannabis, cannabis derivatives, and cannabinoids.

- "Reasonable belief" is an articulated belief that a member is using illegal drugs or misusing alcohol such that the member's work performance is adversely affected by the presence of alcohol or illegal drugs. This articulated belief must be drawn from specific and particularized objective behavior and conduct exhibited by the member, and reasonable inferences therefrom. Reasonable belief may be based upon a member's slurred speech, odor, disorientation, abnormal appearance, conduct or behavior, or other observable cause.

Section 18.6 Prohibited Conduct. For purposes of this Article, no member shall, while performing their duties for the Employer, while in the Employer's facilities or vehicles, while in uniform, during their on-duty meal period, or while off-duty in public when wearing any City-issued apparel which clearly identifies them as employees of the City of Dublin:

- Be under the influence of alcohol; or
- Use or be under the influence of any illegal drug, or while using any legal drug be impaired to the point that he or she cannot satisfactorily perform their assigned duties; or,
- Unlawfully use, sell, purchase, transfer or possess an illegal drug.

Section 18.7 Reasonable Belief Testing. A member shall be tested for alcohol or illegal drug usage when there is a reasonable belief that their satisfactory work performance is adversely affected by the presence of alcohol or illegal drugs in their system.

Section 18.8 Testing Determination. Upon determining that a member must submit to testing (whether urinalysis for drugs or breath for alcohol) because reasonable belief has been established, the supervisor shall give the Member an opportunity, prior to the test, to request the presence of or to seek the advice from a Lodge representative. The member and the Lodge representative, if available, shall be given an opportunity to communicate any information or other explanation relevant to the circumstances to the supervisor. The supervisor shall then determine, after considering all of the circumstances, whether the test shall be administered. If the supervisor determines that a test shall be given, testing shall take place immediately after discussion with the member and the Lodge representative, if available, but no more than one hundred and twenty (120) minutes after the reasonable belief determination has been made, whichever is sooner. Should a Lodge representative not be readily available and the supervisor believes time is critical in determining whether or not the member is impaired, the supervisor may direct the member to submit to testing immediately. The Lodge representative, if available, may accompany the member to and be present with the member at the collection/testing site.

Section 18.9 Urine Samples. The collection and processing of urine samples shall, in the case of drug testing, comply in all material and applicable respects to the procedures set forth in the most recent revision of "HHS: Mandatory Guidelines for Federal Workplace Drug Testing Program" initially published on April 11, 1988 in 53 Federal Register 11970. The Employer shall contract with a certified laboratory for the collection, processing and testing of urine samples.

Where the member provides a sufficient urine sample at the time of the original sample collection, this sample shall be split and placed in two (2) separate containers at the collection site. In the presence of the member at the testing site, and without ever leaving their sight, each urine sample taken shall be placed in two sterile screw-capped, self-sealed, tamper-resistant urine collection containers which shall each be sealed and labeled and then initialed by the member. The collection of urine samples shall allow individual privacy unless there is reason to believe that the member being tested may alter or substitute the specimen to be provided. Should it be determined by qualified personnel at the collection site that the member has adulterated, diluted, tampered in any way with their specimen, substituted another individual's specimen for their own, or has otherwise obstructed the collection/testing process by refusing to provide a valid specimen, such shall be considered as a "refusal to submit to testing" and the member shall be subject to appropriate disciplinary action. The sample within the first container shall be sent, by the most expedient means available, to the testing laboratory as soon as practicable on the day of the test. The sample within the second container shall also be sent, by the most expedient means available, to the testing laboratory where it shall also be stored in accordance with all applicable Federal guidelines and regulations.

Section 18.10 Drug Testing Procedure. The laboratory shall commence testing of the sample within the first container only if the sample is received in an undamaged condition, properly sealed and labeled, and properly initialed by the member. The certified laboratory shall first conduct an initial screening of this sample. If illegal drugs are found in the sample, then that sample shall be submitted for confirmatory testing. The initial screening shall be accomplished by means of Thin Layer Chromatography (TLC) or equally reliable testing methods, and the confirmatory test shall be accomplished by means of Gas Chromatography/Mass Spectrometry (GS/MS). If as a result of the initial screening and confirmatory test, the test result is positive, the member will be contacted directly by the Medical Review Officer (M.R.O.) at the Human Factor and will be given the opportunity to explain the reasons for a positive test result. Should the member offer an explanation that in the judgment of the M.R.O. sufficiently explains the positive test result, the M.R.O. will consider the results as negative and the Employer will not be contacted. Should masking agents be found in the sample on the initial test, such shall be treated as a refusal to submit to testing and any option to pursue testing of the specimen in the second container shall be forfeited. The Employer shall be notified of such refusal to submit to testing. This refusal to submit to testing shall then subject the member to appropriate disciplinary action.

Section 18.11 Drug Test Results. If the test results are positive and the member has not offered an explanation to the M.R.O. sufficient to cause the M.R.O. to consider the results negative, the Director of Human Resources, or in their absence, their designee, shall be notified and the Director shall in turn contact the member. The member must then decide whether or not they wish the sample within the second container stored at the initial collection site to be tested. If the member so requests, then the sample within the second container shall be tested by the Employer using a second certified laboratory, subject to the testing procedure set forth in Section 18.8 of this Article.

If the member does not request the testing of the sample within the second container after the sample within the first container tests positive or if the member requests the testing of the sample within the second container and it also tests positive for an illegal drug, rehabilitative or disciplinary action shall be taken. Should the results be a "dilute negative", the member shall be required to repeat the testing procedure within 24 hours; the result of the second test shall then

become the test of record. Should the candidate decline to repeat the testing procedure because of a "dilute negative" result on the first test, such shall constitute a "refusal to submit to testing", which shall result in appropriate disciplinary action. Should the results of the second test be "dilute negative", the candidate shall be deemed to have successfully completed the testing process. Should a "dilute positive" result be received by the City on the first or second test, such shall be considered as a "verified positive test", which shall result in appropriate disciplinary action.

Section 18.12 Alcohol Testing. Alcohol Testing shall be accomplished by means of Breath Testing which shall be administered by a Breath Alcohol Technician (BAT). The Employer shall contract with a provider to perform such breath testing and only Evidential Breath Testing (EBT) devices certified by the Federal Government shall be used in the administration of such testing.

Section 18.13 Alcohol Testing Procedure and Results. The Breath Alcohol Technician (BAT) shall administer an initial breath test via the Evidential Breath Testing (EBT) device. If the initial test results in a reading of less than 0.02, the test shall be recorded as "negative". If the initial test results in a reading of 0.02 or greater, a confirmatory test shall be administered. Prior to the administration of a confirmatory test, there shall be a 20-30 minute waiting period to ensure that the presence of mouth alcohol from the recent use of food, tobacco, or hygiene products does not artificially raise the test result. Should the confirmatory test result be different from the initial test result, the confirmatory test result shall be deemed the final result, upon which any disciplinary/corrective action shall be based. A test result of 0.02 or greater on the confirmatory test shall subject the member to appropriate disciplinary/corrective action.

Section 18.14 Discipline/Rehabilitation. A positive test result for alcohol or illegal drug usage may, depending on individual circumstances, result either in discipline and/or referral to the Employee Assistance Program (EAP), as set forth in Article 15, for rehabilitation purposes. Likewise, any refusal to submit to testing may, depending on the individual circumstances, result in either discipline and/or referral to the Employee Assistance Program (EAP). In addition, any member who voluntarily seeks assistance with a drug or alcohol dependency problem shall not be required to, but may, submit to a test and shall be initially referred to the EAP, without any disciplinary action being taken and without any requirement for follow-up random testing.

A positive test result for alcohol or illegal drug usage may result in appropriate discipline to a member where the member's satisfactory work performance has been adversely affected by substance abuse.

Any discipline to be imposed shall be for just cause and shall take into account all facts and circumstances, including the need for testing, the member's desire for and progress in rehabilitation, and the member's past work performance.

Any action taken pursuant to this Article including any positive test results, shall not be used as evidence or otherwise in any criminal proceeding against the member.

If a member accepts a referral to the EAP for assessment as the result of a positive drug or alcohol test as a result of being required to submit to a test or as a result of a refusal to submit to testing, he or she must comply with any recommendation made by the EAP Drug and Alcohol Counselor resulting from the assessment, as a condition of continued employment. The member shall further be subject to follow-up random drug or alcohol testing for a period of up to one (1)

year from the date of completion of the rehabilitation program. Failure to comply with any of the conditions associated with the recommendation of the EAP Drug and Alcohol Counselor, the conditions associated with the rehabilitation program, and random testing as specified above may result in discipline of the member.

ARTICLE 19 RATES OF PAY/WAGES

Section 19.1 Wages.

Wage increases for term of this agreement are as follows and is reflected in the table below:

Police Department Wage Structure						
	January 2023 3.5% Increase	Hourly Rate	January 2024 3.5% Increase	Hourly Rate	January 2025 3.5% Increase	Hourly Rate
OFFICER						
Training Step	\$65,669.55	\$31.57	\$67,967.98	\$32.68	\$70,346.86	\$33.82
Step 1	\$71,172.11	\$34.22	\$73,663.13	\$35.41	\$76,241.34	\$36.65
Step 2	\$81,678.58	\$39.27	\$84,537.33	\$40.64	\$87,496.13	\$42.07
Step 3	\$92,190.70	\$44.32	\$95,417.37	\$45.87	\$98,756.98	\$47.48
Step 4	\$106,044.24	\$50.98	\$109,755.79	\$52.77	\$113,597.24	\$54.61
SERGEANT	\$ 114,792.95	\$55.19	\$ 118,810.70	\$57.12	\$ 122,969.07	\$59.12
LIEUTENANT	\$ 123,541.66	\$59.40	\$ 127,865.62	\$61.47	\$ 132,340.91	\$63.63

Section 19.2 Training Step. Police Officers, who are not State of Ohio Certified Peace Officers at the time of hire and have no past relevant experience, shall be hired at the Training Step in the wage structure.

Section 19.3 Appointment and Advanced Step Hiring. The City Manager, when making appointments to the rank of Police Officer, shall be authorized to recognize the past relevant experience of applicants in determining their placement within the step system.

Section 19.4 Police Officer Step Advancement. The Training Step shall be the hiring step for Police Officers, unless the City Manager has authorized advanced step hiring as governed in Section 19.3. Thereafter, employees shall advance to the next highest step in the wage structure after one (1) year of continuous service at the preceding step, until reaching Step 4.

Section 19.5 Application of Pay Rates. The rates of pay set forth in Section 19.1 are based on full-time employment of forty (40) hours in a work week and 2,080 hours in a work year. These

rates shall be used to calculate wages for hours in paid status for the appropriate pay range and step. "Paid Status" shall include all hours of approved paid leave including holiday, vacation, injury, military, personal, and sick leave.

Section 19.6 Longevity Pay. All members shall receive, in addition to the pay rates established in Section 19.1, an annual longevity payment based upon completed years of service with the City according to the following schedule:

Years of Completed Service	Effective 01-01-2011
4 – 6	\$925
7 – 10	\$1,125
11 – 14	\$1,700
15 – 19	\$1,850
20 and more	\$2,100

Longevity pay shall be issued during the pay period in which the member's anniversary date of appointment falls. The member will be paid in one (1) lump sum in the form of a separate payroll deposit in that given pay period, which will be taxed at the member's W-4 rate.

Longevity Pay will be pro-rated in the following circumstances:

1. Should a member actually retire upon approval from the appropriate Retirement System prior to their anniversary date, longevity pay shall be pro-rated, at the rate in effect as of the employee's previous anniversary date, on a per pay period basis and the member shall receive longevity pay for the pay periods the member served in full pay status prior to their established retirement date.
2. Should a member be on unpaid leave during one or more pay period prior to their anniversary date, longevity pay shall be pro-rated, at the rate in effect as of the member's previous anniversary date, on a per pay period basis and the member shall not receive longevity pay for the pay periods the member was not in full pay status.

Section 19.7 Instant Bonus Program. All members in the rank of Police Officer, Sergeant, and Lieutenant, shall be eligible for an "instant bonus" in accordance with the following terms and conditions:

- A. The Police Department may give bonuses to reward an individual member or a team of members for an exceptional effort in implementing and completing a project or program that:
 1. Significantly enhances the efficiency or effectiveness of City operations; or,
 2. Significantly exceeds expectations in the areas of performance or customer service; or,

3. Demonstrates innovation or creativity in government.

B. If a bonus is awarded, it shall be awarded immediately, not at the end of the year.

C. An individual member may be eligible for one instant bonus in any calendar year. The maximum bonus amount shall not exceed \$1,000.00, however, the typical bonus will be in the area of \$250.00

D. Bonuses may be awarded upon written request of the member's supervisor and the Chief of Police, detailing the member's achievement and recommending a bonus amount. The bonus shall not be awarded unless approved by the Chief of Police and the City Manager. All decisions regarding the award of bonuses shall ultimately be at the discretion of the City Manager.

E. In the event the supervisor and Chief of Police believe that time off with pay would be a more effective reward for excellence under this program, and the time off will not negatively affect the operation of the Department, the member may be awarded up to eight (8) hours of paid leave in lieu of a monetary bonus. The monetary value of the time off shall be deducted from the remaining balance of bonus funds available to the Department.

F. The supervisor will not inform the member of the bonus until it is approved by the Chief of Police and City Manager.

G. To be eligible for a bonus, the member must demonstrate a clearly exceptional level of effort and achieve an outcome that is superior.

H. Once the Department's bonus funds are expended in a calendar year, there will be no additional funds available to the Department until the next calendar year.

Section 19.8 Shift Differential. Shift differential pay shall be provided under the following circumstances, excluding hours in paid status while on approved leaves, restricted duty, and off-duty court-time hours:

For all members regularly assigned to a shift which does not begin between 6:00 a.m. and 10:44 a.m., shift differential shall be applied to any hours worked. For members regularly assigned to a shift which begins between 6:00 a.m. and 10:44 a.m., shift differential shall be paid between the hours of 5:00 p.m. and 6:00 a.m.

Shift differential pay shall be applicable for actual hours worked. Shift differential shall not be paid in addition to regular pay for any hours spent on approved paid leave, with the exception of leave due to mandatory training, which shall qualify for shift differential pay. Mandatory training is defined as classes/coursework required by the Department including training to maintain basic peace officer certification and training required for ancillary positions (i.e. Property Officer, DARE Officer, Juvenile Officer, K-9 Officer, and Firearms Officer). Time spent in optional training programs shall not qualify for shift differential pay. If authorized overtime occurs in conjunction with the regular workday, the shift differential shall be paid for each hour of overtime worked as specified above. If shift differential pay is applicable, and overtime occurs, the shift differential

pay shall be added to the base hourly rate prior to computing the overtime rate. Shift differential pay will be paid on a bi-weekly basis and will not be cumulative under any circumstance. The shift differential rate will be \$1.25/hour.

ARTICLE 20

RATES FOR MEMBERS FOLLOWING CERTAIN PERSONNEL ACTIONS

Section 20.1 Temporary Patrol Work Assignment. If any member of the Police Officer Unit performs the duties of a Supervisory Unit member, that member shall be paid hour-for-hour at the wage rate of the next higher rank for all hours during which the member performs such duties. In all cases, the basis for determining the Office-In-Charge (O.I.C.) on any given shift shall be at the discretion of the Chief of Police or their designee.

Section 20.2 Return to Duty. Any member who voluntarily resigns may be reinstated to the same rank and Step if there is a need for the member's services within two (2) years after the date of resignation, subject to approval by the City Manager. If there is no vacancy at the time of request for reinstatement, the Director of Human Resources shall place the name of said applicant at the bottom of the appropriate re-employment list for the remainder of the two (2) year period.

Section 20.3 Return from Military Service. Pursuant to the Ohio Revised Code Section 5903.03, any member who leaves, or has left, the City service to enter the active service of the Armed Forces of the United States, or any branch thereof, and who subsequently is reinstated to employment with the City, shall be entitled to receive compensation at the Step rate to which the member would have been entitled had service with the City not been interrupted by service in the Armed Services.

Section 20.4 Reinstatement from Authorized Leave. Time spent on authorized leave shall be credited for purposes of step advancement and shall not constitute a break in service.

ARTICLE 21

HOURS OF WORK AND OVERTIME

Section 21.1 Workweek. The workweek normally consists of forty (40) hours based on five (5) consecutive eight (8) hour work days and sixty (60) consecutive hours off. This Section is subject to the provisions in Sections 14.7 (D) and (E).

Section 21.2 Overtime. Members shall be compensated at straight-time rates for all hours in paid status, except that all hours in excess of either eight (8) hours in paid status in any work day or forty (40) hours in paid status in any workweek shall be compensated for at a rate of time-and-one-half (1-1/2). All overtime shall be authorized by the member's immediate supervisor. Failure of the member to obtain supervisory approval for overtime, prior to working the overtime, may result in disciplinary action. Except in emergency situations, the Department shall post available overtime opportunities and shall attempt to evenly distribute, as far as practicable, overtime to members requesting the same.

A member's regular rate of pay for purposes of computing overtime shall be calculated to include, as applicable, the following:

- A. Straight time hourly rate of pay;
- B. Shift differential hourly rate of pay;
- C. Working out of rank hourly rate of pay differential;
- D. Longevity payment.

The applicable annual longevity pay amount, as referenced in Section 19.5, shall be divided by 2,080 to determine an hourly amount. That hourly amount will be multiplied by .5 and then multiplied by the number of overtime hours worked in excess of 40 hours in paid status in each workweek. That amount shall then be included in the regular payroll check issued for the pay period in which the overtime work occurred

Section 21.3 Seventh Consecutive Day of Work. When a member is required by an appropriate supervisor to work on the seventh consecutive day within their scheduled work week, and the member has actually worked at least thirty-two (32) hours in the five (5) previous days plus a minimum of three (3) hours on the sixth (6th) consecutive day of work, the member shall be compensated at the rate of double time for all hours worked on the seventh consecutive day.

Section 21.4 Call-In Pay/Court Pay. When a member is either called in or scheduled in advance for work by an appropriate supervisor, and the member reports for said work more than 30 minutes before or after the completion of their shift, the member shall be paid or credited with a minimum of three (3) hours at the appropriate overtime rate. This provision shall apply portal to portal to members called in from off-duty for court appearances. Members, otherwise off duty, who are required by the Court to be and remain available for work-related court sessions, shall be compensated at the overtime rate for a minimum of two (2) hours in duration. In order to be compensated for more than two (2) hours at the appropriate overtime rate for said purpose, the member must provide appropriate justification from the Court that he was required to remain available for said time in excess of two (2) hours.

Section 21.5 Compensatory Time. At the election of the member, overtime may be compensated with compensatory time off in accordance with the provisions of the Fair Labor Standards Act. Such compensatory time off shall be equal to one and one-half (1-1/2) times or two (2) times as applicable for hours for each one (1) hour of overtime worked. The maximum number of accumulated compensatory hours permitted in a member's compensatory time bank, at any point in time, shall be One Hundred Sixty (160). After a member's maximum compensatory time bank has reached One Hundred Sixty (160) hours, all additional overtime during the calendar year for such member shall be paid at the appropriate overtime rate.

Compensatory time accumulations shall carry over from year to year, except that a member is entitled to be paid out for any of their accumulation the first pay of each quarter during the calendar year (January, April, July, October). The calculation for converting compensatory time to cash shall be the member's established hourly rate of pay multiplied by the number of hours the member desires to convert. In the event the member wishes to exercise this option, it shall be their responsibility to make the request using the Kronos timekeeping system, specifying the number of hours the member wishes to convert to cash. This request must be made in conjunction

with a member's approval of their time for the first pay in each quarter. The cash conversion will then be paid with the member's regular paycheck on the scheduled pay date. It is the member's responsibility to ensure there are sufficient compensatory balances available for future leave requests using compensatory time. The Department of Finance will not be responsible for reversing the cash payment of compensatory time that was directed by the member.

Compensatory time shall be denied in instances where usage of such would reduce the shift below minimum staffing levels.

Compensatory time may not be substituted for previously approved and schedule annual vacation leave (i.e., vacation leave that was scheduled during the annual vacation bid process established in Section 25.5.A.).

Section 21.6 Payment For Accrued Compensatory Time Upon Separation. A member who has accrued compensatory time shall, upon the termination of employment for any reason, be paid the unused compensatory time at the rate of pay received by the member at the time of separation. In the event of any member's death, such compensation shall be paid to the member's surviving spouse or, secondarily, to their estate.

Section 21.7 Use of Casual Leave Time. Any request for casual leave of more than eight (8) consecutive hours use shall be submitted at least seventy-two (72) hours in advance of its requested usage. The notice period may be waived in cases where circumstances make compliance impracticable. Requests for eight (8) or less consecutive hours use may be submitted with less than seventy-two (72) hours' notice and may be approved by the shift supervisor (Lieutenant or Sergeant) on the same shift, as scheduling and operational needs of the Department permit such usage. Casual leave may be requested in multiples of one-quarter hours. Requests for casual leave shall not be approved in any manner so as to interfere with annual vacation scheduling.

or purposes of casual leave scheduling on a holiday, within thirty (30) days preceding the holiday, a member's schedule shall not be changed to accommodate the request for casual leave unless the affected member has agreed. This does not preclude the Department from altering shift assignments to maintain minimum staffing levels when illness or other emergency situations arise.

Section 21.8 Application to Special Duty. Special duty is defined as employment by a separate and independent employer of a member performing law enforcement or related activities under provisions whereby the Department: 1) requires the member be hired by a separate and independent employer to perform such duties; 2) facilitates the employment of the member by a separate and independent employer; and 3) otherwise affects the conditions of employment of the member by a separate and independent employer. If a member, solely at the member's options, agrees to be employed on special duty, the hours the member is employed by a separate and independent employer in law enforcement or related activities shall be excluded by the City in the calculation of the hours for which the member is entitled to overtime compensation.

"Special Duty" is also defined as any detail where members perform Police duties for a public or private entity in Dublin and required three (3) or fewer members. The Labor Relations Committee shall make recommendations to the Chief regarding assignments, procedures, and guidelines concerning "Special Duty". Said Committee shall be comprised of two (2) Members appointed by

the Chief of Police and three (3) Members appointed by the Bargaining Unit, and shall meet at least once on an annual basis.

Any detail where a public or private entity requests four (4) or more Officers shall be designated as a "Special Event". Guidelines, assignments, and procedures for a "Special Event" shall be set by the Chief of Police or designee.

The special duty rate for police officers shall be 65% above the Police Officer step 4 pay rate rounded to the nearest dollar.

The special duty rate for supervisors shall be 65% above Sergeant's pay when a supervisor is required (for any detail requiring 4 or more Officers that is designated as a special event).

These rates may be modified in writing with the agreement of both parties.

Section 21.9 On-Call Pay. When a Detective or Technical Crash Investigator is placed in an on-call status by the Department, the on-call member shall receive a \$1.50 per hour pay supplement as compensation for all non-working hours in which the members serves in the on-call status. In addition to the off duty hours spent in the on-call status, the member shall also receive the \$1.50 supplement during on-duty hours, including their regularly scheduled eight-hour shift, when such hours fall within the time frame (normally a 4 to 7 day block of time) the member has been designated to serve in the on-call status. This \$1.50 per hour supplement shall be included in any calculation of overtime and shall be paid as part of the member's bi-weekly pay check.

ARTICLE 22

UNIFORMS, EQUIPMENT, AND ALLOWANCES

Section 22.1 Initial Issue. Upon appointment to the Department, each new uniformed member shall receive the items listed below:

- 12 uniform shirts
- 1 8-point cap (mesh & vinyl covers)
- 1 8-point rain cover
- 1 winter hat
- 1 set of rain gear
- 6 pair's uniform pants
- 3 plain uniform neckties
- 1 jacket with appropriate City patches (lightweight with lining)
- 1 winter coat with zipper lining and appropriate City patches
- 1 pair all season plain-toed black uniform shoes
- 1 Velcro belt
- 1 Velcro gun belt
- 1 holster
- 1 double ammo case and two (2) magazines
- 2 sets of handcuffs
- 1 handcuff case
- 1 hat badge

- 2 breast shields
- 1 wallet badge
- 1 tie tac
- 1 name plate
- 1 service weapon
- 1 walkie holder (if necessary)
- 1 set of Body Armor
- 2 Body Armor carriers
- 1 baton
- 1 uniform ball cap
- 1 walkie
- 1 baton holder
- 1 glove pouch
- 1 gas mask
- 1 ballistic helmet
- 1 first response kit (with corrective gas mask insert, if needed)
- 1 Taser
- 1 Taser holder
- 1 radio ear mic
- 1 tourniquet

Section 22.2 Change in Issuance. Should the required issuance of uniforms, uniform parts, leather, or equipment for the entire Department be changed by the City, all members shall be provided the new uniforms, uniform parts, leather, or equipment at no cost to the members. Body Armor shall be replaced every five (5) years at the City's expense.

Section 22.3 Plain Clothes Issue. A member, upon initial assignment by the Chief of Police to a full-time specialized "Plain Clothes" assignment within the Community Impact Unit or the Detective Section shall receive the following:

- \$1,100.00 for appropriate clothing;
- 1 holster; and,
- 1 ammo mag pouch

Each member, if eligible, is entitled to this plain clothes issue only once during their employment with the City.

Section 22.4 Annual Uniform and Equipment Allowance. Each uniformed member, after their initial year of service, shall receive an annual uniform and equipment allowance in the amount of \$1000. This allowance will be payable in two (2) semi-annual installments. The first semi-annual payment shall be made on either the following March 30 or September 30, whichever next follows the member's first anniversary date. Thereafter, these semi-annual payments shall be made on March 30 and September 30 of each calendar year. The uniform and equipment allowance shall be used by the member to maintain their required uniform, uniform parts, leather, and equipment including necessary replacement thereof.

Section 22.5 Annual "Plain Clothes" and Equipment Allowance. Each plain clothes member, after the initial year of service in the Community Impact Unit or Detective Bureau, shall

receive an annual allowance in the amount of \$1000 payable in two (2) semi-annual installments. The first semi-annual payment shall be made on either the following March 30 or September 30, whichever next follows the member's first anniversary date of plain clothes assignment. Thereafter, these semi-annual payments shall be made on March 30 and September 30 of each calendar year.

Section 22.6 Required Purchases. Uniformed members shall be required to purchase uniform parts and equipment as defined by appropriate orders, regulations, codes, or other policies of the Chief and City Manager. Plain clothes members will be expected to purchase the needed clothing and equipment to function as plain clothes members of the Department, as required by appropriate orders, regulations, codes, or other policies of the Chief and City Manager.

Section 22.7 Dry Cleaning. The Employer shall provide uniform cleaning at no cost to the member. In any week, a member shall be entitled to have laundered/cleaned up to ten (10) uniform items. In addition, each member shall be permitted to have their winter coat and hat cleaned once each year. Uniform items for non-uniformed members shall be defined as items of regular work clothing. The City shall designate a dry cleaning service or services where uniforms are to be cleaned and the City shall have the exclusive authority to contract for the provision of such services.

Section 22.8 Damaged, Destroyed, Lost Personal Property. In general, personal property of a member, previously approved for City use, which is damaged or destroyed in the line of duty shall be replaced by the City, via a reimbursement procedure, up to a maximum value of \$175.00 on a per occurrence basis. Requests for replacement of damaged personal property must be submitted in writing to the Chief identifying the circumstances under which the damage occurred and the type, brand name, model, value, condition prior to damage etc. of said property, together with the damaged property. If such request is subsequently approved, the member shall be reimbursed for the purchase of replacement personal property which, in all respects, is substantially similar to that which was damaged, up to the maximum value identified above, provided that the member submits a valid receipt identifying the type, brand name, model, dollar amount, etc. of the property purchased as a replacement. Specific exceptions to the above mentioned \$175.00 maximum reimbursement shall include initial issue items listed in Section 22.1, eyewear and off-duty service weapons, the maximum reimbursement for which shall be the replacement value of said items.

Personal property of a member, previously approved for City use, which is lost in the line of duty, may be replaced, via a reimbursement procedure, in full or partial value, up to a maximum value of \$175.00 on a per occurrence basis, if it can be shown that reasonable precautions had been taken by the member to prevent such loss. Requests for the replacement of lost personal property must be submitted in writing to the Chief identifying the circumstances under which the loss occurred and the type, brand name, model, value, condition prior to loss, etc. of said property. If such request is subsequently approved, the member may be reimbursed for the purchase of replacement personal property which, in all respects, is similar to that which was lost, up to the maximum value identified above, provided that the member submits a valid receipt identifying the type, brand name, model, dollar amount, etc. of the property purchased as a replacement. Specific exceptions to the above mentioned \$175.00 maximum reimbursement shall include eyewear, off-duty service weapons, Body Armor, and items specifically provided only to members

on Bicycle or Motorcycle details, the maximum reimbursement for which shall be the replacement value of said items.

For purposes of this Section of the Contract, personal property shall include uniform parts as identified under Section 22.1 (Initial Issue).

Section 22.9 Termination. Upon termination, members shall return to the Department all Department-issued uniforms and equipment in good condition, minus normal wear.

Section 22.10 Retirement. Upon retirement to receive either service retirement or disability benefits, under honorable conditions, the City Manager may permit a member to purchase their issued service weapon for one dollar (\$1.00).

Section 22.11 Uniform Committee. The Uniform Committee is composed of 6 members and will include 4 bargaining members, two of which will be chosen by the Union.

ARTICLE 23 VACATION LEAVE

Section 23.1 Vacation Year. The vacation year for members shall end on the last day of the payroll calendar year.

Section 23.2 Conditions for Accrual. Members shall accrue vacation leave by pay period at the annual rate set forth in Section 23.3, based upon years of continuous active service. A new member having less than one year of prior public service as defined in Section 23.8, shall accrue but not use vacation until completion of six (6) months of service with the City. A new member with more than one (1) year of prior public service shall be entitled to accrue and use vacation leave immediately upon appointment in accordance with the schedule in Section 23.3. In addition, a member shall not earn the member's full vacation accrual in a given pay period unless the member is in full pay status (i.e. on duty or on approved leave with pay) in the entire pay period. In the event a member is not in full pay status during the entire pay period, the member shall accrue vacation leave on a pro-rated basis taking into account the number of hours in full pay status during the pay period and the member's rate of accrual at that given time. The formula for pro-rating the members accrual under such circumstances shall be the number of hours in full pay status multiplied by the converted hourly accrual rate.

Section 23.3 Accrual Schedule for Vacations. Each member shall be entitled to vacation leave based upon the following vacation accrual schedule:

Completed Years of Public Service	Accrued Vacation (Hours Per Year)
0 up to 1 Year	80 Hours
1 up to 4 Years	108 Hours
4 up to 9 Years	142 Hours
9 up to 15 Years	182 Hours

15 up to 20 Years	208 Hours
20 Years or more	246 Hours

Section 23.4 Vacation Carry-Over. A member with fewer than eleven (11) completed years of public service may automatically carry over from one payroll calendar year to the next a maximum of 160 hours of vacation leave previously earned but not used. A member with eleven (11) but less than twenty (20) completed years of public service may carry-over a maximum of 200 hours of vacation leave from one payroll calendar year to another payroll calendar year. A member with twenty (20) years or more completed years of public service may carry over a maximum of 240 hours of vacation leave from one payroll calendar year to another payroll calendar year.

Section 23.5 Vacation Scheduling/Use. The Department shall attempt to honor all vacation requests in the following manner with the understanding that all vacation leaves shall be taken at such time or times at the discretion of and as approved by the Chief of Police.

- A. **Annual Scheduling.** By December 1, the Department shall post a vacation bid sheet for the following calendar year. Members shall submit written requests for vacation leave by December 15. In cases of conflict, Department seniority shall control as to granting of requests for vacation leave. In the event a member's initial request is disapproved, that member shall have 36 hours to resubmit one final alternate request for consideration. The alternate request cannot exceed the amount of time submitted in the disapproved request. During said 36 hour time period, vacation requests from other less senior members shall not be approved. During the annual vacation approval process, no compensatory time or personal leave requests shall be approved for months other than January or February of the calendar year.
- B. **Casual Scheduling.** For other than annual scheduling, or scheduling of leave on holidays, members may on a first-come basis request occasional use of vacation leave. Requests of eight (8) hours or less usage will be acted upon by the shift supervisor, where practicable, during the tour of duty in which the request is made. If no conflict in scheduling occurs, the member's request shall be honored.
- C. **Incremental Usage.** Vacation leave may be taken in multiples of one-quarter (1/4) hour.
- D. Vacation Leave shall not be used to artificially extend the separation date of a member's resignation from employment with the City. The effective date of a member's resignation from employment shall be the same as the member's last day worked.

Section 23.6 Rates of Pay for Vacation Hours. All vacation hours shall be paid at the applicable straight time rates; however, member ordered to work while on approved vacation leave shall be paid at the double time rate, with a minimum guarantee of four (4) hours of pay for each such call in.

Section 23.7 Annual Conversion of Accrued Vacation Leave. During December of each year, each member who has completed eleven (11) years or more of public service may convert

a portion of the member's accrued but unused vacation leave to a cash payment subject to all of the following conditions:

1. The member must have a vacation leave balance of at least one hundred and twenty (120) hours at the end of the first pay period in December;
2. The member may convert no more than forty (40) hours of vacation leave to pay;
3. Vacation leave shall be converted at the rate of one (1) hour of vacation leave to one (1) hour of pay at the member's current straight time hourly rate of pay;
4. Once vacation leave is converted as part of this process, it cannot be converted back into vacation leave; and,
5. This payment shall be made to the member by separate deposit with the first pay of the following calendar year.

Section 23.8 Payment for Accrued Vacation Leave Upon Resignation/Separation and Death. Members who are laid off, who resign with two weeks' notice, or who are separated from City service shall be paid all unused but accrued vacation to which they are entitled at the rate of pay in effect at the time of separation. In the event of a member's death, such compensation shall be paid to the member's surviving spouse, or secondarily, to the member's estate.

Section 23.9 Prior Public Service Credit. A member of the City, who has prior public service with any state government or any political subdivision thereof, is entitled to receive credit for their prior service with such employers for the purpose of computing the amount of their vacation leave with the City, provided the nature of this service is relevant to the nature of their service with the City, and provided the member informs the City within 30 days of hire date. Documentation of verification must be provided of such prior public service within 90 days of hire date.

ARTICLE 24 HOLIDAYS

Section 24.1 Paid Holidays. The following are designated as paid holidays for all members:

New Year's Day
President's Day
Martin Luther King Day
Memorial Day
Juneteenth
Independence Day
Labor Day
Veteran's Day
Thanksgiving Day
Christmas Day

Section 24.2 Special Holidays. Any special holiday, as formally designated as a paid holiday for any City Workers by City Council, when City offices are closed for all or part of the day, will also be observed as a paid holiday under this Article. The mere closing of a facility or City Building for any reason without this specific designation as a special paid holiday does not cause an entitlement to a paid holiday. This paragraph does not apply to specific traditional holidays negotiated and agreed to be recognized as paid holidays between any other collective bargaining unit and the City of Dublin.

Section 24.3 Holiday Work. Each holiday which is observed on a member's regularly scheduled workday shall be worked by the member unless the member is excused from work. However, the Department may schedule the workforce as necessary to provide adequate coverage to the City.

Members may request to be scheduled off on a particular holiday by timely request to the Chief of Police or designee. Such request shall be granted as long as the request does not substantially degrade service to the community. Conflict involving multiple requests shall be resolved on a seniority-within-rank basis.

Section 24.4 Holiday Pay.

- A. If a holiday falls on a member's regularly scheduled day off, and the member is not required to work the holiday, or if the member is excused from work, the member shall elect to receive either eight (8) hours compensatory time or eight (8) hours of compensation at the straight time rate, provided that the member was not absent without authorized leave on either the work day before or after the holiday. A member on sick leave the workday before or after the holiday may be required to present a doctor's certificate in order to receive credit for eight (8) hours of compensatory time or eight (8) hours of compensation
- B. When a member works a holiday on the member's regularly scheduled workday, the member shall be entitled to:
 - 1. Regular rate of pay for all hours worked if eight (8) hours or less are worked, and double time the regular rate of pay for any hours worked in excess of eight (8) hours; and,
 - 2. At the member's option, eight (8) hours pay or eight (8) hours compensatory time at the regular rate of pay; and,
 - 3. At the member's option, one-half hour of compensatory time or one-half hour of compensation at the regular rate of pay for each hour worked.
- C. When a member works a holiday on the member's regularly scheduled day off the member shall be entitled to:
 - 1. Double time pay for all hours worked; and;
 - 2. At the member's option, eight (8) hours pay or eight (8) hours of compensatory time at the regular rate of pay; and,

3. At the member's option, one-half hour compensatory time or one-half hour of compensation at the regular rate of pay for each hour worked in excess of eight (8) hours.

Section 24.5 Comp Time, Personal Leave, Vacation Leave on Holidays. For purposes of casual leave scheduling on a holiday, within thirty (30) days preceding the holiday, a member's schedule shall not be changed to accommodate the request for casual leave unless the affected member agrees. This does not preclude the Department from altering shift assignments to maintain minimum staffing levels when illness or other emergency situations arise.

ARTICLE 25 PERSONAL LEAVE

Section 25.1 Personal Leave. Effective the first pay period of January of each year, each member, who is in full pay status at such time, shall receive personal leave in accordance with the following schedule. However, new members appointed throughout the year shall receive a pro-rated allocation of Personal Leave in accordance with the following schedule:

PERSONAL LEAVE ALLOCATION
40 Hours (5 days)

PRO-RATED PERSONAL LEAVE ALLOCATION	
Timeframe Appointed	Personal Leave Allocation
January 1 through March 31	40 Hours (5 days)
April 1 through June 30	30 Hours
July 1 through September 31	20 Hours
October 1 through November 30	10 Hours
December 1 or Later	None

In the event a member is not in full pay status at the time personal leave is normally allocated to each member, yet returns to full pay status at some point thereafter, the amount of that member's Personal Leave allocation shall be pro-rated. For every pay period the member has been in less than full pay status, 1.55 hours of Personal Leave shall be deducted from the normal 40 hour annual allocation. Eight (8) hours of Personal Leave may be used, on three (3) separate occasions annually, at the member's discretion, provided that the member gives at least two (2) hours of call-off notice prior to the start of the member's shift. Personal Leave hours used in this fashion applies only to those member within patrol units and must occur by November 15th. In addition, only one (1) member per shift will be approved for Personal Leave usage in this manner. Personal

Leave requested in this manner shall not be granted during designated "No Time Off" situations. Any Personal Leave not used in this fashion is subject to sufficient prior notice and prior approval of the member's supervisor. Personal leave must be used by the last pay period in December of the year in which it was received and may not be carried over to the next payroll calendar year. Personal Leave shall not be used to artificially extend the separation date of a member's resignation from employment with the City. The effective date of a member's resignation from employment shall be the same as the member's last day worked.

Section 25.2 Payment for Unused Personal Leave. If a member is laid off, terminated, or separates service, the member will be compensated for unused personal leave at the rate of pay at the time of the layoff, termination or separation. The member must provide at least ten (10) calendar days' written notice prior to resignation in order to receive this compensation. In the event of a member's death, such compensation shall be paid to the member's surviving spouse, or secondarily, to their estate. A member will not be compensated for unused personal leave if they resign or are terminated within their one (1) year probationary period.

ARTICLE 26 INSURANCE

Section 26.1 Medical, Dental, & Vision Benefits. The City shall make available group medical, prescription drug, wellness, dental, and vision benefits to all members and dependents who meet the eligibility requirements of the plan.

Medical and Pharmacy Coverage. The City will provide health insurance coverage to Employees through a high deductible healthcare plan with an associated health savings account (HSA) or a Health Reimbursement Account (HRA). An HRA is for those employees ineligible for an HSA based on being covered by other healthcare coverage like Medicare or TRICARE.

Premiums

The City will charge a premium for medical coverage at the following base rates:

Single Coverage: \$1,875

Family Coverage: \$3,750

These premiums can be waived depending on the employee's and spouse's, if applicable, participation in the Healthy by Choice wellness program and meeting its associated standards as follows:

Participation Based Premium Waiver

Single Coverage: \$750

Family Coverage: \$1,500

Results Based Premium Waiver

\$225 per health factor for blood pressure, cholesterol and tobacco-free status

\$450 per health factor for BMI/waist circumference

Participating employees hired during the year shall have the City's contribution to their HSA or HRA based on their participation of the HBC program in that initial year. The premium and waiver of the premium associated with the wellness program will be based on the enrollment period for the HBC program in the initial year.

In addition to the base rates, if an employee or covered spouse is a tobacco user, then a tobacco use premium will be charged as follows:

Premium Equivalent Contribution (Tobacco Use Premium Surcharge). A tobacco use premium surcharge of 15% of the premium equivalent based on the level of single coverage for tobacco use if either the employee or covered spouse uses tobacco. In the event that both the employee and the spouse use tobacco, then a premium surcharge of 15% of the premium equivalent based the level of single coverage shall be applied to both the employee and the spouse for a total of 30%. The employee and/or spouse may make a request for an alternative standard during open enrollment and the City will work with an employee (and, if they wish, the employee's doctor) to earn the same reward by different means. This tobacco use premium will be waived for the tobacco user if the tobacco user successfully participates in an alternative standard as prescribed under the "Healthy by Choice" program described in Attachment A of this document. If coverage is elected and an alternative standard is not requested and completed, then the premium surcharge for tobacco use will be charged through payroll deduction evenly over the year.

Annual Deductibles

Single Coverage = \$2,500

Family Coverage = \$5,000

HSA/HRA Contributions

The City will make automatic annual contributions paid out in the month of January to each employees' health savings account who are covered by the City Health Insurance Plan based on the coverage level. These HSA/HRA deposits are not tied to the City's HBC Wellness Program and will be made in the following annual amounts:

Single Coverage: \$1,875

Family Coverage: \$3,750

Medical Plan Preventive Care	
In-Network	Out-of-Network
Plan Pays 100% / Member Pays 0%	Plan Pays 0% / Member Pays 100%
Covered items include, but are not necessarily limited to annual physical examinations, immunizations, mammograms, pap smears, prostate exams, colonoscopies and routine lab work. Services will be covered as recommended by a physician based on preventive care	No covered items.

guidelines as outlined in the PPAC. (See Plan Document for more information.)	
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Medical Plan Annual Deductible	
In-Network	Out-of-Network
Individual \$2,500	Individual \$5,000
Family \$5,000	Family \$10,000
Both medical and pharmacy expenses will contribute towards the deductible. For family coverage, the family deductible must be satisfied – either by the Member or by a covered family member or a combination thereof - before the plan pays for any covered services for you and your dependents.	
Medical Plan Co-Insurance	
In-Network	Out-of- Network
85%/15%	60%/40%
Medical Plan Out-of-Pocket Maximum	
In-Network	Out-of- Network
Individual \$4,000	Individual \$8,000
Family \$6,850	Family \$16,000

Medical Plan Hospital In-Patient Stay	
In-Network	Out-of-Network
85%/15%	60%/40%
Medical Plan Emergency Room	
In-Network	Out-of-Network
85%/15%	85%/15%
Medical Plan Mental Health/Drug & Alcohol Out-Patient	
In-Network	Out-of-Network

85%/15%	60%/40%
Medical Plan Mental Health/Drug & Alcohol In-Patient Stay	
In-Network	Out-of-Network
85%/15%	60%/40%

Medical Plan Prescription Drug Coverage	
Tier 1 – Generic Drugs	15% per rx to max co-pay of \$25
Tier 2 – Drugs on Formulary	25% per rx to max co-pay of \$100
Tier 3 – Non-Formulary Drugs Except Specialty Drugs	30% per rx to max co-pay of \$200
Specialty Drugs	25% per rx to max co-pay of \$100
Mail Order	The above co-insurance applies to mail order prescriptions; however, it is for a 90-day supply vs. 30-day supply. Maximum co-pay is double the retail max co-pay for each tier.
Stipulations	Specialty drugs available only through the UHC specialty network at a 30-day supply.
Medical Plan Coverage Additions	
Acupuncture services shall be covered as an Out-of-Network benefit subject to the Out-Network Deductible.	
Nutritional counseling services shall be provided by In-Network providers subject to the In-Network Deductible.	

Flexible Spending Account
Members may choose annually, during the established open enrollment period, to participate in a Dependent Care Flexible Spending Account to cover eligible expenses for child and elder care as determined by the IRS.
Dependent Care Expenses
Maximum contribution of \$5,000 per year per family, subject to applicable IRS regulations.
Flexible Spending Account Limitations
• Member must use the money in their FSA prior to a pre-specified deadline. • Money not used by the deadline reverts back to the City. • The City will provide notice of any changes to the FSA limitations based upon the applicable IRS regulations.

B. Dental and Vision Coverage

The City shall make available group dental and vision benefits to all employees and dependents who meet the eligibility of the plan. The plan design of this program shall be substantially the same as that in effect on December 31, 2016 with the following exceptions, which shall become effective upon execution of this Agreement.

1. **Premium Equivalent Contribution.** Dental/vision insurance coverage will continue to be a separate option for employees. The City will make dental/vision coverage available at no charge to new employees if the employee has elected medical insurance for the calendar year. A premium equivalent contribution will be charged for dental/vision coverage. The premium equivalent will be waived if the employee and enrolled spouse have had one preventive care dental screening during the prior plan period.
2. Dental coverage will be paid at 90% of the Usual and Customary Rate (UCR).

Consumer MaxMultiplier Design Feature

This design feature allows plan members to use less dental services in a particular year or series of years, accumulate award credits, and use more dental services in future year. The following table explains how this design feature will operate.

Original Annual Maximum	Annual Claim Threshold	Annual Account Award	Annual Network Bonus	Annual Award + Bonus Maximum	Consumer MaxMultiplier Account Limit	Total Annual Maximum + Account limit
\$1,750	\$750	\$400	\$100	\$500	\$1,750	\$3,500

Definitions

Original Annual Maximum – Dental plan annual or plan-year maximum coverage level without regard to the Consumer MaxMultiplier benefit.

Annual Claim Threshold – To earn a Consumer MaxMultiplier benefit, claims during the plan year cannot exceed this amount.

Annual Account Award – This is the award amount earned when claims in the year are greater than \$0 and less than the Annual Claim Threshold.

Annual Network Bonus – This is the bonus amount earned only when network claims occur during the plan year.

Annual Award + Bonus Maximum – This is the maximum an individual may earn for his/her Consumer MaxMultiplier account during the plan year.

<u>Consumer MaxMultiplier Account Limit</u> – This is the maximum limit for an individual’s Consumer MaxMultiplier account. After reaching this limit, no additional funds are placed in an award account, regardless of plan year claims. <u>Total Annual Maximum plus Consumer MaxMultiplier Account Limit</u> – This is the potential available dollar amount for an individual to use in any one benefit year if they reach the Consumer MaxMultiplier account limit. It is the combination of the original annual benefit maximum plus the Consumer MaxMultiplier account.
<u>Requirements</u> Plan members are required to have one claim per year, this can include an annual preventive exam.
<u>Exclusions</u> This design feature is not applicable to Orthodontia coverage.

Patient Protection and Affordable Care Act (PPACA)

In light of the Patient Protection and Affordable Care Act of 2010 and anticipated changes that may result from further rules as defined by the governing bodies, the City will be legally required to adhere to changes that affect our benefit plan and could affect the delivery of benefits to Employees.

Section 26.2 Liability Insurance. The Employer shall maintain, subject to availability, Law Enforcement Liability insurance coverage for all members or the duration of this Agreement. The City shall pay the annual premium for such coverage. Whether or not insurance coverage is available, the employee shall be indemnified and held harmless by the City, provided the member acted within the scope of their assigned duties in the situation/incident out of which a claim or lawsuit arises.

Section 26.3 Change in Carriers. If it becomes necessary to change carriers (medical, dental, vision, and life insurance benefits only), and such change would affect the benefits under the plans, the City agrees to meet with representatives of the Lodge prior to implementing the change in order to negotiate the impact of any proposed change.

Section 26.4 Life Insurance. Effective upon execution of this Agreement, the City shall provide group term life insurance coverage in the amount of \$150,000. The full premium for this coverage shall be paid by the City. In addition, the coverage reduction provisions within the existing life insurance policy in effect as of December 31, 2007, which begins at age 65, shall remain in the life insurance policy under this Agreement. Coverage amounts shall be doubled if the member is killed in the line of duty.

Attachment A. Healthy by Choice Plus Benefit Plan including a Health Savings Account

- A. The City will provide health insurance coverage to Members through a high deductible health plan and health savings account (HSA).

The City will make annual contributions to each participating members' health savings account based on the coverage level (single or family) and participation in the City's Wellness program.

Participating employees, newly hired during the year shall have the City's contribution to their HSA prorated based on the number of full months employed by the City in that initial year.

B. Results- Based Incentives: (Employee and Enrolled Spouse)

The City of Dublin health plan is committed to helping employees and their spouse achieve optimal health. Rewards for participating in the Healthy by Choice Plus wellness program are available to participants covered by the health plan. The results-based incentives are based on meeting four key health factors in relation to blood pressure, cholesterol, body mass index/waist circumference, non-tobacco use during the open enrollment period.

Both the member and enrolled spouse must participate in the Wellness Program in order to qualify for the premium waiver on family coverage. Employees who have a spouse also employed by the City have two options: (1) elect one family coverage plan through either the employee or enrolled spouse, or (2) both elect single coverage. If either member or spouse has dependent children, they must elect the first option.

- C. In addition, if an employee or spouse (if enrolled) is unable to meet a standard for a premium waiver under the Healthy by Choice program in light of their health status, they may qualify for an opportunity to earn the full premium waiver by different means. They must contact the City's wellness coordinator during the open enrollment period, and the City will work with them (and, if they wish, with their doctor) to find a wellness program or alternative standard with the same reward that is right for them in light of their health status.

If an employee or enrolled spouse requests an additional wellness program/alternative standard that requires a re-screening, the City will offer one additional screening mid-year which will also be available to new employees hired after the open enrollment period. Employees and spouses who meet the re-screening standards (based on wellness program they enrolled in), or newly hired employees who meet the original standards will be eligible for the full amount of the reward which would be deposited in September. The amount of the contribution will be based on the City's deposit schedule.

- D. Deposit of the City's contribution into a HSA for each calendar year will be deposited in January.

E. Employee "Health Savings Account" Contribution ~ Participation in Wellness Program

If the employee (and dependent spouse, if applicable) enrolls in the City's Wellness Initiative as described below, the City will make an annual contribution described in Section 26.1. Enrollment in the City's Wellness Initiative (Healthy by Choice Plus) is described below:

Medical Plan Employee "Health Savings Account" Contribution Wellness Initiative
An annual opportunity to voluntarily participate in the Healthy by Choice Plus program to earn contributions towards a Health Savings Account (HSA) will be made in accordance with the City's wellness initiative as follows; an employee and enrolled spouse must designate participation on an annual basis during open enrollment.
An employee will receive a contribution towards a Health Savings Account if employee (and enrolled Spouse if applicable) choose to participate in the City's Wellness Initiative and designate such during established open enrollment period including: Requirement(s): Employee and enrolled spouse, if applicable, take on-line Health Risk Appraisal; screenings and submit documentation during established open enrollment period; complete annual exam with physician; and participate in an educational and activity program. Results are not reviewed by City personnel.

F. Employee "Health Savings Account" Contribution - Result Based Wellness Incentive

If the employee (and dependent spouse, if applicable) voluntarily participate in the City's Results-Based Wellness Incentive as described below, the City will make an annual contribution described in Paragraph B, above. The results-based incentives are based on meeting four key health factors targets described below:

Health Factor	HBC Target
Controlled Blood Pressure (based on up to three separate readings)*	<140/90**
Controlled total cholesterol (based on finger stick blood draw)*	<=200mg/dl or LDL <=130
BMI or waist measurement at the navel	BMI <= 25 or if BMI >25, waist circumference of 35 inches (female)/40 inches (male)
Tobacco Use	Tobacco free for one year and at time of screening

* With or without medication to control

** May test two times during screening appointment

An employee and enrolled spouse who elect to participate in the results-based incentives must attend a screening exam to be held on-site or other location as chosen by the City, in order to qualify for the incentive contributions for blood pressure, cholesterol, BMI or waist circumference. Off-site screenings will not be accepted. Participating employees and spouses will be asked to sign a confirmation form regarding their non-tobacco use to qualify for the incentive in relation to being tobacco-free.

If it is unreasonably difficult due to a medical condition for a participating employee or enrolled spouse to achieve a health factor under the Healthy by Choice Plus program or if it medically inadvisable to do so, the City of Dublin will make available a reasonable alternative standard to qualify for the requirement. In order to qualify for the requirement, an employee or spouse must submit a statement from a physician confirming that a medical condition makes it unreasonably difficult to meet the requirements of the program.

G. Wellness Initiative Enrollees Recreation Center Membership

If the employee enrolls in the City's Wellness Initiative during the annual open enrollment period, the employee shall be entitled to a free Dublin Community Recreation Center membership during such period of enrollment. Recreation Center Memberships are taxable benefits.

Additional features include:

Implementation of a voluntary diabetes screening during open enrollment and voluntary participation in the UHC Diabetes Prevention and/or Control Program. Participation in the UHC Diabetes Prevention and/or Control Program is free to HBC members (employee and dependent spouse, if applicable).

ARTICLE 27 SICK LEAVE

Section 27.1 Sick Leave Accrual. All members shall be entitled to sick leave with pay accrued at the rate of 4.614 hours per pay period. Sick leave with pay shall accrue without limitation, with the exception that a member shall earn the full sick leave accrual each pay period only if the member is in full pay status for the entire pay period. In the event the member is not in full pay status for the entire pay period, the member shall accrue sick leave at the rate .0577 hours for each one (1) hour in full pay status during the pay period. New members shall be granted sick leave at the date of their employment and "advanced" 24 hours of sick leave. However, no additional sick leave will be allowed to accumulate until the end of the third month of employment.

Section 27.2 Use of Sick Leave. Sick leave with full normal pay shall be granted for the following reasons:

- A. Personal illness or physical incapacity.
- B. Illness or physical incapacity of a member's immediate family member requiring the member's personal care and attendance. Immediate family, for the purpose of this Section, is defined as mother, father, spouse, son, daughter, stepson, stepdaughter, person for whom the member serves in loco parentis, or legal guardian who stands in place of a parent. Members shall be permitted to petition the City Manager for usage of sick leave for illnesses to family members outside the definition of immediate family. The City Manager shall evaluate such requests and may, on case-by-case basis, approve such requests, at the City Manager's discretion.

- C. Enforced quarantine of the member in accordance with community health regulations.
- D. Where injury leave has expired and the member must be absent from work for an additional period.
- E. Sick leave may be requested for other members of a member's household, and may be approved by the City Manager on a case-by-case basis.

A member contemplating absence on sick leave shall inform the Department of the fact, except in the case of provable inability to make a phone call, and provided further that such calls shall be made as soon as possible thereafter.

Absence for a fraction of a day that is chargeable to sick leave in accordance with these provisions shall be charged proportionately in one quarter (1/4) hour increments, if needed.

A doctor's certificate, or other proof of illness, may be required for sick leave use if, in the judgment of the City, there may be some questions as to the legitimacy of the need for sick leave. Abuse of sick leave may be cause for disciplinary action.

Section 27.3 Conversion of Sick Leave. A member shall be entitled to the conversion of their accumulated but unused sick leave as follows:

A. Conversion Upon Separation

The member may convert their sick leave subject to all of the following conditions:

1. The member separates employment while in good standing (member's separation must not be for just cause) with the City;
2. The member has at least ten (10) years of full-time public service, five (5) years of which must be full-time continuous service with the City; and,
3. The member must have a sick leave balance of at least five hundred (500) hours at the time of separation.

The rate of pay for such accumulated sick leave shall be at the member's straight time hourly rate of pay at separation multiplied by one-third (1/3) of the total number of accumulated sick leave hours. Total payment under this provision shall not exceed 700 hours. In the event a member dies while in the employ of the City, except as provided in paragraph (C) of this section, and the member has at least ten (10) years of full-time public service, five (5) of which is full-time continuous service with the City the member's spouse, or secondarily the member's estate, shall be paid the aforementioned rate of redemption for accumulated unused sick leave.

B. Annual Conversion

During December of each year, each member may convert a portion of the member's accrued but unused Sick Leave to a cash payment subject to all of the following conditions:

1. The member must have a sick leave balance of at least five hundred (500) hours at the end of the first pay period in December;
2. The member must have forty (40) hours or less of sick leave usage for the past 12 months as of the end of the first pay period in December (FMLA protected leave exempted);
3. The member may convert no more than twenty-eight (28) hours of sick leave to pay;
4. Sick leave shall be converted at the rate of one (1) hour of sick leave to one (1) hour of pay at the straight time hourly rate of pay;
5. Once sick leave is converted to pay, it shall not be converted back to sick leave; and,
6. This payment shall be made to the member by separate deposit with the first pay of the following calendar year.

C. **Killed or Dies in the Line of Duty**

If a member is killed or dies in the line of duty, the member's surviving spouse, or, secondarily, the member's estate, shall be paid for one hundred percent (100%) of the value of the member's accrued but unused sick leave, at the straight time rate in effect at the time of death. The amount so paid shall constitute payment in full for all accrued and unused sick leave credited to the member.

Section 27.4 Sick Leave Transfer from Prior Public Employer. Any member who has accrued sick leave with the State of Ohio or any political subdivision of the State shall be entitled to have this accrued sick leave transferred to the City of Dublin, provided the member was hired by the City within ten (10) years of resignation/separation from the prior public employer, and provided the City receives written verification of such prior service from the prior public employer.

ARTICLE 28 INJURY LEAVE

Section 28.1 Injury Leave with Pay. Injury Leave shall be granted, subject to the approval of the City Manager or designee, for a period of time or times up to one hundred eighty (180) calendar days for each injury. This one hundred eighty (180) calendar days of leave must be used within two (2) calendar years of the member's date of injury. This provision as to use of injury leave shall apply to any injury which first occurs during the term of this Agreement.

Injury is defined as a service-connected disability which interferes with a member's ability to perform their normal work duties, and which has been reported to the member's immediate supervisor not more than three (3) days from the date such injury occurs.

Simultaneous with the request for injury leave, the member may also make application and actively prosecute a claim for benefits under the Workers' Compensation Law of Ohio. If application for benefits under the Workers' Compensation Law is favorably considered, the

Employer's obligation under the continued use of injury leave shall be the employee's regular rate of pay.

A maximum of three (3) hours of Injury Leave will be granted for an absence from work necessitated due to the attendance of an Industrial Commission Hearing resulting in the allowance a of the claim and/or medical diagnosis code being heard. Other forms of leave will not be converted to Injury Leave until 15 days of the City's receipt of the final order.

A maximum of three (3) hours of Injury Leave will be granted for an absence from work necessitated due to the attendance of a physician's appointment for an approved condition. Injury leave for greater than three (3) hours will be granted whenever necessary for additional travel or additional medical documentation is provided to the City.

In cases where injury leave or sick leave is necessary, the Chief of Police may internally address a light duty work policy which will provide for the attempted placement of Departmental personnel who are unable to perform in their normal capacity.

ARTICLE 29 SPECIAL LEAVES

Section 29.1 Leave With/Without Pay.

- A. **Leave Without Pay.** Leave without pay may be granted, upon the approval of the City Manager, or designee, if requested in writing by the member. A member on leave without pay shall not accrue sick leave or vacation leave benefits, and, except for the time spent on FMLA leave, the member will be required to pay 100% of the cost associated with maintaining their medical, dental, and/or vision coverages if the member wishes any or all of said coverages continued. Failure of any member to report promptly at the expiration of such leave of absence shall be considered as a resignation. Leave without pay may be granted for:
1. **Personal Leave.** A leave without pay may be granted to a member at the discretion of the City Manager, or designee, for personal reasons not to exceed thirty (30) days without loss of seniority, if the member can be spared. This unpaid leave may be extended only with the written approval of the City Manager, or designee. Any request for an extension must be submitted in writing a minimum of two (2) weeks prior to the requested date of the extension.
 2. **Extended Illness or Accident Leave.** A leave without pay may be granted to a member for a period not to exceed one (1) year, unless required by law, without loss of seniority when such member is physically unable to report for work because of illness or accident. The member must promptly notify the Chief of the necessity therefore (and the Chief shall transmit the request to the City Manager, or designee, for approval). The member must supply certification from a qualified physician attesting to the necessity for such absence.
 3. **Maternity Leave.** A maternity leave without pay may be granted to a member, without loss of seniority, upon approval of the City Manager, or designee. Extension

of the leave may be granted for a period not to exceed one (1) year, unless required by law, if the member's physician states in writing that such an extension is needed for recuperative health reasons.

4. **Probationary Period Leave.** Leave without pay during the probationary period shall not be counted part of the probationary period.

B. **Leave With Pay.** Leave with pay may be granted for good and sufficient reasons which are considered to be in the best interest of the City, by the City Manager, or designee, but only in the event of extraordinary circumstances.

Section 29.2 Jury Duty Leave. Leave with pay may be granted to a member in order that they may serve required jury duty, or if they are required by law to appear in a case resulting directly from the discharge of their duties as a City employee. In such cases, all witness or jury fees shall be signed over to the City.

Section 29.3 Bereavement Leave.

- A. In the event of death in the immediate family, a member shall be entitled to up to three (3) paid work days for a funeral service and/or burial. Additional days of personal leave, vacation leave and compensatory time may be approved by the City Manager, or the City Manager's designees, on a "case-by-case" basis, given the merits of each particular set of circumstances.
- B. The immediate family for purposes of bereavement leave shall include: spouse, son, daughter, brother, sister, parent, legal guardian, person who stands in place of a parent, grandparent, grandchild, step-father, step-mother, step-brother, step-sister, step-son, step-daughter, mother-in-law, father-in-law, daughter-in-law, son-in-law, brother-in-law, sister-in-law, grandparent-in-law, half-brother, half-sister, aunt, uncle and any other relative living in the home of the member.

Section 29.4 Military Leave. Except as may otherwise be specifically provided herein, a member may be granted a leave of absence without pay to be inducted or otherwise enter military duty.

A member who, as a member of the Ohio Organized Militia which is comprised of the Ohio National Guard, the Ohio Military Reserve, and the Ohio Naval Militia, or as a reserve member of the Armed Forces of the United States, is called upon to receive military training or who is called to active duty, shall be entitled to a leave of absence with pay for a period or periods not to exceed twenty-two (22) eight (8) hour work days or 176 hours in any one (1) calendar year. A member qualifying for paid military leave who is called or ordered to the uniformed services for longer than the above period shall be paid for the remaining time beyond the first twenty-two (22) eight (8) hour work days or 176 hours at their regular compensation rate less whatever compensation the member may receive for such military service. If the member's military compensation exceeds the compensation the member is otherwise entitled to from the City, the member will not be entitled to any additional compensation from the City.

Section 29.5 Family and Medical Leave. Employees shall have such right and options as are guaranteed to them by the Family and Medical Act and the City shall have such rights and options as are allowed to it by the Family and Medical Leave Act and may exercise them without need for further bargaining.

A member seeking FMLA leave must first use paid sick time (if applicable), vacation and holidays before going on unpaid FMLA leave. Employees are permitted to use personal and compensatory time to substitute for unpaid FMLA leave after the exhaustion of sick and vacation.

ARTICLE 30 TRAINING AND TUITION REIMBURSEMENT

Section 30.1 Training. In recognition of the value of continuing education and professional development of members, the City shall establish a goal of sixty (60) hours of annual training for members at the City's expense. This training may be either initiated by the City pursuant to a training schedule or by the member, with the approval of the Chief of Police or their designee. The training shall be related to a member's performance of their job duties or in preparation for job duties which may be assigned to the member after completion of training. Reasonable efforts shall be made to accommodate the training to the member's regular work schedule. The City shall endeavor to provide as much advanced notice as practical to members regarding their training schedules. In that this training is a work-related duty, the member shall receive all pay and benefits to which they are otherwise entitled during training.

The expense for members who are required or requested to attend training schools, seminars, or other instructional or educational programs, including examination to increase their knowledge and further their competency in their occupation with the Employer, shall be paid by the Employer as follows:

- A. Registration fees, tuition charges for the training school, seminar, or educational or other instructional programs.
- B. Meals when not provided by the tuition.
- C. The current rate for mileage, as determined by the IRS, when a member is not provided with a City-owned vehicle. Where overnight lodging is provided at the City's expense, a member will only be reimbursed for mileage to and from the training facility on one occasion each way unless otherwise approved or directed by the Chief. All other travel shall be considered to be non-work-related and non-reimbursable. Bus, train, or airfare at coach rate shall be provided for lengthy trips when travel is approved by the City Manager.
- D. Hotel or motel charges when lodging is not provided as term of tuition payment.
- E. Hourly rates will be paid when schools or training are scheduled during regular working hours.
- F. All necessary tools and equipment required by the course of instruction.

Payments may be issued in advance for paragraphs (A) and (D) of this Section.

Travel Time (Time in Transit), when it involves travel away from home overnight, shall be considered work time and therefore, compensable in accordance with City Administrative Order 2.58. Leisure time and sleep time are not considered work time and therefore, are not compensable.

Section 30.2 Tuition Reimbursement.

- A. Reimbursement Program. Each member shall be eligible for a maximum of Three Seven Hundred and Fifty Dollars (\$3,750) in reimbursement per calendar year for fees and required textbooks, and job-related courses/degree programs of instruction voluntarily undertaken.
- B. Necessary Approval. All course work subject to reimbursement shall be transmitted, in advance and through the Chief of Police to the Director of Human Resources for approval. The Chief of Police shall provide a written recommendation concerning approval/disapproval of the request at time of transmittal to the Director of Human Resources. If practicable, a member shall make application for approval of course work reimbursement at least fifteen (15) days prior to commencement of the course of study. The Director of Human Resources shall evaluate the member's course work/degree program for job-relatedness and shall notify the member, in writing, regarding their approval/disapproval of said course work/degree program on that basis. The City agrees that approval of course work/degree program will not be unreasonably withheld. A member may receive blanket approval for an entire degree program or a continuing course of study if all courses within the program are identified. If all or part of the program is approved, the member need not reapply for approval for each course within the portion(s) approved. If all or part of the program/course work is disapproved by the Director of Human Resources, the member may appeal, in writing, said disapproval directly to the City Manager within 72 hours of notification from the Director of Human Resources. The City Manager will issue a written decision on the member's appeal within five (5) working days of receiving said appeal.
- C. Course Attendance. Courses are to be taken on other than scheduled working hours, unless approval is obtained from the Chief of Police, or designee, to take such courses on duty time.
- D. Reimbursement Procedure. Reimbursement shall be made upon successful completion of the course with a grade of C (2.00) or better. The member shall submit an official transcript or certificate demonstrating successful completion of the course and a receipt from the institution confirming that the member has paid for tuition, fees, and required textbooks. Any financial assistance available to a member shall be deducted from the amount of tuition reimbursement that would otherwise be payable. The member shall not be reimbursed for incidental expenses such as paper or supplies, mileage, parking, meals, or other expenses other than tuition, fees, and required textbooks.
- E. Pay Back Obligation. Effective January 1, 2003, in the event a member separates their service with the City within one year of receiving tuition reimbursement, the member shall

pay back 100% of the reimbursement received in the prior twelve months for a Degree Program or continuing course of study. If such separation occurs within the second year after tuition reimbursement is received, the member shall pay back 50% of the reimbursement received in the prior twelve months for a Degree Program or continuing course of study. No such payback shall be required where a member is separated from service due to a layoff or receipt of a disability retirement. Any pay back obligation must be satisfied within one (1) year of the member's separation date.

ARTICLE 31 FIELD TRAINING OFFICERS

Section 31.1 Compensation. Any member who serves as a Field Training Officer shall be entitled to, at the member's option, two (2) hours of compensatory time or two (2) hours of compensation at the straight time rate for every eight (8) hours of training time spent with the trainee.

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ARTICLE 32 CANINE UNIT

Section 32.1 Compensation for Care and Maintenance of Department Canine. A Department canine will be the property of the Employer and will be licensed in accordance with all State and Local laws as such. The Employer will provide all food, equipment, insurance and veterinary services for the canine. The Canine Officer will be responsible for the care and maintenance of the assigned canine. The canine will live with the member inside their residence and will not be permitted to be kenneled on their property. The Canine Officer will be assigned a normal eight (8) hour duty shift. The Canine Officer will be compensated three-fourths hour per day (0.75 hours), seven days a week for the "at-home care" of the canine. The compensation for the care and maintenance of the canine (5.25 hours per week) will be paid at the applicable overtime rate (time and one-half compensation). The three-fourths (0.75) hour of compensation for each day will be used for the care and maintenance of the canine including but not necessarily limited to cleaning, feeding and caring for the canine during the member's off-duty time on any given work day. Travel time to and from the Canine Officer's normal duty assignment does not constitute any part of their shift. Work performed on a normal day off other than canine care and maintenance shall be paid at the applicable overtime rate. Due to the nature of this assignment, the Canine Officer agrees to be "on call" with the understanding that their services may be requested at any time, day or night. Should the Canine Officer not be available to "on-call"

request(s), the Canine Officer will notify the Dublin Police communication center, prior to the period of unavailability, and provide the duration of time the Canine Unit will be unavailable. Repeated failure to respond to requests for service during normal time off is grounds for a re-evaluation of the specific member's commitment to the program and could be used as part of assessing whether the member is to be retained in the position of Canine Officer. There shall be no compensation given until their services are requested and the Canine Officer has actually left their residence in response to a "call out".

ARTICLE 33

EMPLOYEE INCENTIVE PROGRAMS

Section 33.1 Employee Incentive Programs. Members shall be eligible for employee incentive programs (e.g. Personal Computer Purchase Program, Wellness Program incentives/awards, etc.) offered to other non-bargaining unit employees of the City. Eligibility to participate in these incentive programs and receipt of any awards through these programs shall be governed by the written program rules, regulations, and requirements as approved by the City Manager.

Section 33.2 Employee Discounts. Should Dublin City Council approve employee discounts in the future, the City agrees to apply such approved employee discounts to members and non-bargaining unit employees alike. Likewise, any Council approved modifications to present or future discounts will also be applied to members and non-bargaining unit employees alike.

ARTICLE 34 DURATION

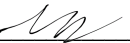
Section 34.1 Duration. All of the provisions of this Agreement shall become effective upon execution by a representative of both parties, unless otherwise specified. This Agreement shall continue in full force and effect for a term of three (3) years from January 1, 2023 until December 31, 2025.

Section 34.2 Signatures. Signed and dated at Dublin, Ohio on or as of the 15th day of June, 2023.

FRATERNAL ORDER OF POLICE:

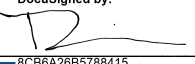
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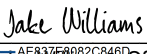
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Jeff Simpson, President, Capital City Lodge #9

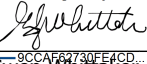
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Steve Mason, FOP Lodge #9 Executive Board Liaison

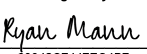
DocuSigned by:

3906A9324ECC447
Alex Carlson, Lieutenant

DocuSigned by:

8CB6A7655788415
Devin Howard, Sergeant

DocuSigned by:

AE837E9082C846D
Jake Williams, Officer

DocuSigned by:

9C0A563730FE4CD
Gwen Whittaker, Officer

DocuSigned by:

A3040C7447EC492
Ryan Mann, Officer

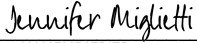
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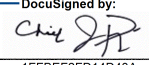
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Scott Nicholson, Officer

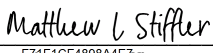
CITY OF DUBLIN:

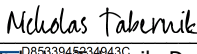
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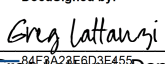
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Megan O'Callaghan, City Manager

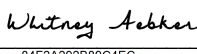
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Jennifer Miglietti, Human Resources Director

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Justin Paez, Chief of Police

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Matthew L. Stiffler, Director of Finance

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Nicholas Tabernik, Deputy Chief of Police

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Greg Lattanzi, Deputy Chief of Police

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Whitney Aebker, Human Resources Business Partner